

The Central Administrative Tribunal Rules Of Practice, 1993

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The Central Administrative Tribunal Rules Of Practice, 1993

Rule THE-CENTRAL-ADMINISTRATIVE-TRIBUNAL-RULES-OF-PRACTICE-1993 of 1993

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The Central Administrative Tribunal Rules Of Practice, 1993

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235.

Whereas it is expedient to frame unified and consolidated Rules of Practice, the Central Administrative Tribunal in exercise of the powers conferred by section 22 of the Administrative Tribunals Act, 1985 (Central Act

13 of 1985

) and all other powers thereunto enabling it to frame Rules to regulate its own practice and procedure, hereby makes the following Rules of Practice in supersession of all the existing orders, regulations and notifications on the subject:-

Chapter I

Preliminary

1.

Short title

.-These rules may be called The Central Administrative Tribunal Rules of Practice, 1993.

2.

Commencement

.- (a) These rules shall, after their publication in the Official Gazette, come into force on 1st November, 1993.

(b)

These rules shall apply, as far as may be, to all proceedings pending in the Central Administrative Tribunal on the date of their commencement.

Chapter II

3.

Definitions

.-In these rules, unless there is anything repugnant to the subject or context,-

(i)

"Address for service" shall mean the address furnished by a party or his authorised agent, or his legal practitioner at which service of summons, notices or other processes may be effected;

(ii)

"Application" means and includes Original Application O.A., Review Application R.A., Transferred Application T.A., Miscellaneous Application M.A. and Petition for Transfer P.T.;

(iii)

"Act" and "Procedure Rules" shall mean the Administrative Tribunals Act, 1985 (Central Act 13 of 1985

) and the Central Administrative Tribunal (Procedure) Rules, 1987, as amended from time to time;

(iv)

"Code" means the Code of Civil Procedure, 1908 (5 of 1908), as amended from time to time;

(v)

"Full Bench" means a Bench duly constituted consisting of three or more Members;

(vi)

"Legal practitioner" includes a Standing Counsel authorised to accept the service for any department or organisation of the Central Government/State Government or any authority, a Corporation, a body owned or controlled by the Central Government/State Government;

(vii)

"Pleadings" shall include original applications, reply statements, rejoinders and additional statements supplementing the original applications and the reply statements, as may be permitted by the Tribunal;

(viii)

"Vacation Bench" means a Bench duly constituted for discharging the functions of the Tribunal during the vacation;

(ix)

Words not defined in these rules shall have the same meaning as assigned in the Act and the Procedure Rules.

Chapter III

Preparation And Presentation Of Pleadings And Other Papers

4.

Preparation of pleadings and other papers

.- (a) All pleadings, affidavits, memoranda and other papers filed in the Tribunal shall be fairly and legibly typewritten or printed in English or Hindi language on durable white foolscap folio paper of Metric A-4 size (30.5 cms. long and 21.5 cms. wide) on one side only in double space with a left margin of 5 cms. and right margin of 2.5 cms. duly paginated, indexed and stitched together in the paper-book form. The index shall be in Form No. 1.

(b)

English translation of documents/pleadings shall be duly authenticated by any legal practitioner.

5.

Date and signature

.-A party required to affix his signature shall also state his name in capitals near his signature and initial or sign at the

bottom of each page.

Explanation.-The expression "signature" or "initial" includes thumb-mark.

6.

Attestation

.- (a) The attestation contemplated in Rule 9(2) of the Procedure Rules shall be made at the end of the document in the form given below:

"This/Annexure.....is the true copy of the original document."

(Signature)

Name and Designation of the Attestor with date".

(b)

Sub-rule (a) above shall also govern production of xerox copies of the documents, provided they are clear and legible.

7.

Production of authorisation for and on behalf of an Association

.-Where an application/pleading or other proceeding purported to be filed is by an Association, the person or persons who sign(s)/verify(ies) the same shall produce alongwith such application, etc., for verification by the Registry, a true copy of the resolution of the Association empowering such person(s) to do so:

Provided the Registrar may at any time call upon the party to produce such further materials as he deems fit for satisfying himself about due authorisation.

8.

Procedure on production of defaced, torn or damaged documents

.-When a document produced alongwith any pleading appears to be defaced, torn, or in any way damaged or otherwise its condition or appearance requires special notice, a mention regarding its condition and appearance shall be made by the party producing the same in the Index of such a pleading and the same shall be verified and initialled by the officer authorised to receive the same.

9.

Receipt of papers

.- (a) All pleadings and papers shall be received in the Registry only during the office hours on the working days, provided they are presented or sent in the manner provided in rule 4(1) of the Procedure Rules.

(b)

All pleadings and papers received before 3 p.m. in which urgent interim orders are sought, shall ordinarily be processed immediately for being listed before the Bench on the next working day.

10.

Date of stamping of papers and maintenance of Inward Register

.- (a) The receiving branch of the Registry shall immediately on receipt of an application/petition or other pleadings or papers, affix the date-stamp of the Tribunal in the following manner:-

(i)

Date-stamp shall be affixed on all pages on the main/first copy and on the first page of each other copy.

(ii)

Receiving Clerk shall affix his initials on the stamp affixed on the first page of the main/first copy and on the first page of all other copies.

(b)

Receiving branch of the Registry shall on affixing the date-stamp, enter the details thereof in the Inward Register, Register No. 1 and assign a Diary Number. The same Diary Number shall be entered immediately below the date-stamp on the first page of the main/first copy and all other copies.

Chapter IV

Scrutiny, Registration, Number And Posting For Admission/orders

11.

Scrutiny of application/petition/other pleadings and papers

.- (a) The Scrutiny Branch of the Registry shall, on receipt of the application/petition pleadings from the receiving branch, scrutinise the same as expeditiously as possible but not beyond two days from the date of receipt:

Provided if, for any reason, the scrutiny is not completed within the above period, the same shall be immediately

reported to the Registrar, who shall take prompt steps to complete the scrutiny.

(b)

The report of the scrutiny of the application under section 19 of the Act shall be in Form No. 2 and of Contempt Petition (C.P.) (Civil/Criminal) in Form No. 3 and the scrutiny report shall be annexed to the application/petition.

(c)

Report of scrutiny of all other pleadings and papers shall be recorded on the reverse side of the last page of such pleadings/papers.

12.

Maintenance of Order Sheet

.-The Scrutiny Branch shall attach to every OA/RA/TA/PT/CP an order sheet in duplicate in Form No. 4. The column "Notes of the Registry" in the order sheet shall be for the notings by the Registry and the column "Orders of the Tribunal" is meant for the use of the Bench.

13.

Classification of papers

.- (a) The papers received in the Registry in all applications and C.Ps. except Miscellaneous Applications, shall be classified and placed in files "A", "B" and "C" as provided in Form No. 5.

(b)

"A" File shall consist of two separate parts. Part I shall contain the order sheet and orders annexed thereto. Part II shall contain the application with annexures, reply with annexures and rejoinder with annexures and arranged as far as possible consecutively in the order of the parties.

(c)

"B" File shall contain the duplicate copy of the papers as in "A" File.

(d)

"C" File shall contain the remaining papers including vakalatnama, notices, postal acknowledgements, Miscellaneous Applications, Replies and Rejoinders thereto and Supreme Court orders, etc., if any.

14.

Submission of case files to Registrar

.-On completion of the scrutiny, the Scrutiny Branch shall place the case file duly classified as "A", "B" and "C" alongwith the report of scrutiny and the order sheet before the Registrar for his orders.

15.

Registration and Numbering

.- (a) The Registrar on examining the application/pleadings and the scrutiny report shall, if they are in order, direct registration/acceptance.

(b)

Applications under section 19 of the Act ordered to be registered shall be numbered as O.A. No...../20.....

(c)

Cases received on transfer under section 29 of the Act shall be numbered as T.A. No...../20.....

Explanation:-Applications received from the Supreme Court, High Courts and other Courts purporting to be by transfer but not covered by section 29 of the Act shall be numbered as Original Applications of the year during which they are received.

(d)

Applications for review of any order of the Tribunal ordered to be registered shall be numbered as R.A. No...../20.....

(e)

Petitions under the Contempt of Courts Act ordered to be registered, shall be numbered as C.P. (Civil/Criminal) No...../20.....

(f)

Applications under section 25 of the Act ordered to be registered shall be numbered as P.T. No...../20.....

(g)

Other application of Miscellaneous nature not covered by sub-rules (b) to (f) above, ordered to be registered shall be numbered as M.A. No...../20.....

(h)

Applications/petitions referred to in this rule shall be entered in Register No. 2. Separate registers shall be used for each category of applications/petition referred to in this rule. The Registers shall be maintained from 1st January to 31st December of each calendar year.

16.

Maintenance of I.P.Os./D.Ds. Register

-(a) I.P.Os./D.Ds. received in the Registry shall be entered immediately on their receipt in the Judicial Branch in Register No. 3.

(b)

On every first working day of the week, the I.P.Os. D.Ds. received by the Judicial Branch during the previous week shall be transmitted alongwith the I.P.Os./D.Ds. Register to the Section Officer incharge of Judicial Branch, who after scrutiny shall affix his initials in the relevant column in the Register and transmit the same to the Cash Section. The official incharge of Cash Section shall, after verifying the entries in the Register alongwith the I.P.Os./D.Ds. put his initials in the relevant column in the Register in token of acknowledgement.

17.

Rectification of defects

-(a) If on scrutiny any application or pleading filed in the Tribunal is found to be defective, the Registrar shall notify in Form No. 6 on the Notice Board of the Tribunal fixing the time for rectifying the same.

(b)

The papers shall be returned to the party or his legal practitioner only after obtaining acknowledgement thereof in the Inward Register.

(c)

The Registrar may, for good and sufficient reasons extend the time for rectifying the defects, provided the total period for rectification including the extended period does not exceed thirty days.

(d)

If the party or his legal practitioner contests the office objection and the Registrar is not satisfied, the matter shall be placed before the Bench for appropriate orders.

(e)

If the party/legal practitioner rectifies the defects and represents the application/pleading within the time granted, the Registrar on being satisfied, may order for its registration/acceptance and numbering as provided in rule 15.

18.

Posting of cases for admission/orders before the Bench

-(a) Subject to the orders of the Chairman/Vice-Chairman of the concerned Bench, all registered applications/petitions shall be posted for admission/orders before the appropriate Bench on the next working day. The notice of posting shall be given by notifying in the daily cause list for the day.

(b)

Before placing the records of the case for admission/order, the Registry shall state in brief in the column "Notes of the Registry" of the Order Sheet, the date of presentation and registration, the subject-matter of the application and the date of posting before the Bench and fill up the columns in file covers "A" and "B".

(c)

The category of cases specified in Appendix I to these Rules as may be amended by the Chairman from time to time, may as far as possible be posted before the Single Member Bench and dealt with in accordance with the procedure prescribed therein.

(d)

The constitution of Benches and distribution of work shall be as per the orders/directions given in Appendix II to these Rules, as may be modified by the Chairman from time to time.

19.

Posting of urgent cases

-(a) Notwithstanding anything contained in rule 18, the Chairman/Vice-Chairman and in his absence the senior-most Member of the Bench may order any case not included in the daily cause list to be listed on urgent basis for admission/orders. Such directions shall be promptly carried out by the Registry after completing all the formalities.

(b)

When a Division Bench is not available, urgent cases for admission and interim orders may be posted before a Single Member Bench who shall deal with the same in accordance with the order of the Chairman as in Appendix III as may be amended from time to time.

20.

Matters to be attended to prior to commencement of sitting

-(a) Unless otherwise directed by the Members constituting the Bench, the Court officer shall ensure that records of the cases listed for admission/orders before the Bench on the next working day are sent to the residence of the Members before the evening of the day on which the cause list is published.

(b)

The Court Officer shall ensure that the case records so sent to the residence of the Members are brought back to the concerned Court Hall before the commencement of the Court sitting. The Court officer shall verify the case records listed for the day and arrange them in the serial order as given in the cause list well before the commencement of the sitting.

(c)

The Court officer of the Bench concerned shall ensure that the Court Hall is ready for commencement of the sitting at the prescribed time for such sitting.

(d)

If for any reason, the Bench cannot sit or the sitting is delayed, the Registrar shall promptly obtain the orders of the Chairman/Vice-Chairman and notify the same on the Notice Board and in the Court Hall through the Court Officer.

21.

Maintenance of Court Diary

-(a) The Court Officer of the Bench concerned shall maintain legibly a Court diary in Register No. 4, wherein he shall record the proceedings of the Court for each sitting day with respect to the applications/petitions listed in the daily cause list.

(b)

The matters to be recorded in the Court diary shall include details as to whether the case is adjourned, or part-heard or heard and disposed of or heard and orders reserved, as the case may be.

22.

Statutes/Citations for reference

-.The parties/legal practitioners shall before the commencement of the proceedings for the day, furnish to the Court officer a list of law journals, reports, statutes and other citations, which may be needed for reference.

23.

Calling of cases in Court

-.Subject to the orders of the Bench, the Court officer shall call the cases listed in the cause list in the serial order.

24.

Regulation of Court work

-(a) When the Court is sitting, the Court officer shall ensure-

(i)

that no inconvenience or wastage of time is caused to the Bench in making available the services of Court master/Stenographer/Peon;

(ii)

that perfect silence is maintained in and around the Court hall and no disturbance whatsoever is caused to the functioning of the Bench;

(iii)

that proper care is taken to maintain dignity and decorum of the Court.

(b)

When the Bench passes order directions, the Court officer shall ensure that the records of the case alongwith proceedings/orders of the Bench are transmitted immediately to the Judicial Branch. The Judicial Branch shall verify the case records received from the Court officer with reference to the cause list and take immediate steps to communicate the directions/orders of the Bench.

Chapter V

Service Of Notice

25.

Issue of notice

.- (a) Unless otherwise ordered by the Tribunal, when notice is ordered, the applicant shall, in cases governed by rule 11(6) of the Procedure Rules, pay the prescribed fee for service of notice accompanied by a memo in Form No. 7 within seven days from the date of order. In default, no notice shall be issued to any of the respondents and the matter shall be placed immediately before the Bench for appropriate orders.

(b)

Where the notice is returned to the Tribunal with an endorsement of the postman regarding non-service owing to refusal of the same by the party concerned, the Registrar shall declare that the notice has been duly served on the respondent.

(c)

Where the notice was properly addressed, prepaid and duly sent by registered post, acknowledgement due, the declaration referred to in sub-rule (b) shall be made when for any reason the acknowledgement is not received by the Tribunal within thirty days from the date of the issue of the notice.

26.

Steps for issue of fresh notice

.- If any notice is returned unserved in the circumstances not specified in sub-rules (b) and (c) of rule 25, that fact and the reason therefor shall be notified immediately on the notice board of the Registry. The applicant/petitioner or his legal practitioner shall within seven days from the date of such notification take steps for service of notice.

27.

Consequence of failure to take steps for issue of fresh notice

.- If the applicant/petitioner fails to take necessary steps in the time for service of notice on the respondent(s) and consequently, the service remains incomplete, the Registrar shall post the case before the Bench for further directions.

28.

Service of notice, etc., on legal practitioners

.- A legal practitioner representing a party in any proceeding and any person authorised to accept notices on behalf of a party, shall receive notices, orders, directions, pleadings, etc., required to be served on such party in connection with such proceedings. Such service shall be deemed to be proper service on the party.

29.

Form of notice

.- Notice to show cause regarding admission shall be in Form No. 8. Notice ordered after admission shall be in Form No.

9.

30.

Entries regarding service of notice/process

.- The Judicial Branch of the Registry shall record in the column in the order sheet "Notes of the Registry", the details regarding completion of service of notice on the respondents, such as date of issue of notice, date of service, date of return of notice if unserved, steps taken for issuing fresh notice and date of completion of service, etc.

Chapter VI

Filing Of Reply Statement/rejoinder

31.

Case deemed to be ready on failure to file reply in time

.- When all or any of the respondent(s) fail(s) to file reply statement in the form and in the manner provided under rule 12 of the Procedure Rule within the time granted, the case shall be deemed to be ready for hearing and included in the ready list for final hearing.

32.

Filing of rejoinder

.- (a) The applicant(s) intending to file rejoinder to the reply statement filed by all or any of the respondent(s) shall do so, with the leave of the Bench/Registrar within the time granted. The rejoinder shall be filed within the time granted, duly signed and verified in the manner prescribed for filing reply statement under rule 12 of the Procedure Rules.

(b)

After the expiry of the time granted for filing the rejoinder, the case shall be deemed to be ready for hearing and included

in the ready list for final hearing.

33.

Papers not to form part of the records

.- (a) Except with the leave of the Tribunal, the following shall not form part of the records of the case:-

(i)

Reply statement filed after the expiry of the time granted for the purpose.

(ii)

Rejoinder filed without the leave of the Bench/Registrar or filed after the expiry of the time granted.

(iii)

Additional pleadings filed without the leave of the Bench/Registrar or filed after the expiry of the time granted.

(b)

The above papers treated as not forming part of the record shall be notified on the Notice Board of the Registry requiring the party to take them back within four weeks from the date of the Notification, failing which the Registry shall take steps to destroy the same.

34.

Incorporation of amendments, filing of additional reply, etc

.- When the Tribunal allows a prayer for an amendment of the pleadings or for addition of parties, the same shall be carried out in red ink indicating the date of the order and duly signed by the party/legal practitioner, who has obtained the order, within the time granted for the purpose by the order or if no time is thereby limited then, within 14 days from the date of the order. If however, the Bench or the Tribunal has directed furnishing of a fresh copy incorporating the amendments/addition of parties, the same shall be filed in triplicate and after serving a copy of the amended pleading on the other party within the time granted by the Court or if no time is granted with 14 days from the date of the order. In default, the Registry shall place the matter before the Bench for orders.

Chapter VII

Proceedings Before Registrar's Court

35.

Matters to be listed before the Registrar's Court

.- Once an application/petition is admitted and notice ordered, the same shall be posted before the Registrar for completion of pleadings.

36.

Cause List for Registrar's Court

.- Cases required to be dealt with by the Registrar shall be notified in a separate Daily Cause List. The cases so notified shall be taken up in the Registrar's Court in the serial order as indicated in the cause list.

37.

Recording of proceedings

.- On hearing the parties/their legal practitioners and on perusing the records the Registrar may record his decisions in the column "Notes of the Registry" in the order sheet and put his initials with date.

38.

Inclusion of cases in the ready list when pleadings are complete

.- If the pleadings are complete or if the case is deemed to be ready for hearing, the Registrar shall record the same in the order sheet for inclusion in the list of cases ready for final hearing.

Chapter VIII

Preparation Of Ready List, Warning List, Daily Cause List And Posting Of Cases

39.

Maintenance of Ready List

.- The Judicial Branch of the Registry shall maintain separate registers in register Form No. 5 for each category of cases which are ready for hearing. The registers shall contain separate sections for each year. Inclusion of cases in the Register shall be yearwise and in the order in which they become ready for hearing.

40.

Preparation of Warning List

.- (a) From the Ready List, the Registry shall prepare for each category of cases, a separate list called "Warning List"

consisting of such number of cases as may be sufficient in the opinion of the Registrar, for being posted for hearing for a period of two weeks.

(b)

Cases in the Warning List shall be arranged according to the year and number of registration and not on the basis of their serial number in the Ready List. Oldest among the cases be included first followed by the next oldest and so on.

41.

Publication of Warning List

-(a) The Judicial Branch of the Registry shall publish the warning list on the Notice Board of the Registry on the last working day previous to the 1st and 15th of every month.

(b)

The total number of cases to be included in each Warning List as fixed by the Registrar shall, as far as possible, be maintained by adding at the bottom of the list, such number of cases as are required to make good the deficiency, having regard to the number of cases transferred to the Daily Cause List.

(c)

From the Warning List so published, sufficient number of cases shall be taken for inclusion in the Daily Cause List in the order in which they appear in the Warning List, subject to the orders of the Chairman/Vice-Chairman/Bench.

42.

Preparation and publication of Daily Cause List

-(a) The Judicial Branch of the Registry shall prepare and publish on the Notice Board of the Registry before 5.30 p.m. on each working day the Cause List for the next working day. Subject to the directions of the Chairman/Vice-Chairman/Bench listing of cases in the Daily Cause List shall be in the following order:-

(i)

Cases for "Pronouncement of Orders".

(ii)

Cases "For being spoken to".

(iii)

Cases for "Admission".

(iv)

Cases for "Orders/Directions".

(v)

Contempt Petitions.

(vi)

Part-heard cases, latest part-heard having precedence.

(vii)

Cases posted as per directions of the Court.

(viii)

Cases from the "Warning List".

(b)

The title of the Daily Cause List shall consist of the name of the Bench, the day, date and time of the Court sitting, Court Hall number and the quorum indicating the names of the Chairman/Vice-Chairman/Member constituting the Bench with abbreviations in brackets (J) for Judicial and (A) for Administrative.

(c)

Against the number of each case listed in the Warning List and in the Daily Cause List, the following shall be shown:-

(i)

Names of legal practitioners appearing on both sides, giving in brackets the rank of the parties whom they represent.

(ii)

Names of the parties, if unrepresented with their ranks in brackets.

(d)

Office objections and special directions, if any, shall be briefly indicated in the Daily Cause List below the case number.

43.

Carry forward of Cause List and adjournment of cases on account of non-sitting of a Bench

.- (a) If by reason of declaration of holiday or for any other reason, the Bench does not function for the day, the Daily Cause List for that day shall unless otherwise directed be treated as the Daily Cause List for the next working day in addition to the cases already posted for that day.

(b)

When the sitting of a particular Bench is cancelled for the reason of absence of Member(s) of the Bench, the Registrar shall, unless otherwise directed, adjourn the cases posted before that Bench to a convenient date. The adjournment/posting/directions shall be notified on the Notice Board.

44.

Supply of Cause List

.- (a) Two copies of fortnightly Warning List and Daily Cause List shall be furnished to the Advocates/Bar Association of Central Administrative Tribunal for publication on their Notice Board.

(b)

Copies of the Warning List/Daily Cause List may be furnished to the legal practitioners on payment of fees at the rate specified below:-

I. Daily Cause List:

Per Bench (consisting of two members) Rs. 240 p.a.

II. Warning List:

Per Bench (consisting of two Members) Rs. 100 p.a.

(c)

Application for supply of Warning/Daily Cause List shall be made in writing to the Registrar accompanied by one year's subscription by way of Demand Draft or Indian Postal Orders drawn in favour of the Registrar of the concerned Bench not less than a week before the date from which supply is to commence.

(d)

The rates specified above shall be subject to such modifications as may be made by the Chairman from time to time.

45.

Request for adjournments

.- Unless the Bench otherwise permits, requests for adjournments of the cases listed in the Daily Cause List shall be entertained only at the beginning of the session.

46.

Maintenance of Stage Register and Posting Register

.- (a) The Judicial Branch of the Registry shall maintain a Stage Register in Form Register No. 6 for each category of applications/petitions from the stage of first posting till disposal.

(b)

Posting Register shall be maintained in Form Register No. 7.

(c)

All orders regarding clubbing at cases shall be entered in the order sheets of all the cases required to be clubbed together and posted accordingly.

(d)

The Section Officer concerned shall ensure that the aforesaid registers are promptly and properly maintained and the directions of the Bench faithfully carried out.

47.

Early hearing of cases

.- If early hearing of a case out of turn is required, the party/legal practitioner shall make an application stating the reasons therefor in Form No. III of the Procedure Rules, after serving copy thereof to the other parties. The application shall, if in order, be listed before the Chairman or in his absence the Vice-Chairman nominated by him in the case of the Principal Bench and before the Vice-Chairman and in his absence before the senior-most available Member in the case of other Benches.

48.

Vacation Bench Sittings and Posting of cases

.- (a) When the Tribunal is closed for vacation, the Vacation Bench shall sit on such days as the Chairman in the case of Principal Bench and Vice-Chairman in the case of other Benches and in his absence the senior-most Member available,

may specify.

(b)

During the vacation only matters which are required to be immediately or promptly dealt with, shall be received in the Registry. The Registrar, on being satisfied about the urgency, shall order registration and posting of such cases.

(c)

During the vacation, the Registrar may accept replies, rejoinders to O.As., R.As., etc., provided a copy of the same has been served on all the other parties/legal practitioners.

(d)

Inspection of records may be permitted during the vacation according to the Rules.

(e)

Certified copies may also be supplied during the vacation according to the Rules.

Chapter IX

Posting Of Review Applications

49.

Posting of Review Applications

.-Posting of Review Applications shall be governed by the order made by the Chairman as contained in Appendix IV subject to such modifications as may be made by the Chairman from time to time.

Chapter X

Full Bench Matters

50.

Preparation and filing of paper books on reference to the Full Bench

.-When a Division Bench of the Tribunal makes an order referring the case/issues to a Full Bench, the applicant or such other party, as the Bench directs shall furnish in Paper Books form duly indexed and continuously paginated three/five sets (depending upon the number of members of the Full Bench) for the use of the Bench and one set to each of the parties/or their legal practitioner on the other side, within two weeks or such other time as the Bench may direct, arranging the papers in the following orders:-

Page No

(i)

Index

(ii)

Written chronology of events/orders relevant to the case.

(iii)

Order of Reference.

(iv)

Memo of Parties.

(v)

Application/Petition.

(vi)

Annexures to the application/petition.

(vii)

Reply by each respondent in the order of their ranking.

(viii)

Annexures at the end of reply of each respondent.

(ix)

Rejoinder, if any.

(x)

Annexures to Rejoinder, if any.

(xi)

Other relevant papers with description and date :

Provided that if the same legal practitioner appears for more than one party, only one set of paper book need be furnished to him.

51.

Circulation of order of Reference to other Benches

.-The Registrar of the Referring Bench shall send a copy of the order of reference to all the other Benches of the Tribunal for information.

52.

Seeking orders of Chairman for constitution of Full Bench and fixing date of hearing

.-The Registrar of the Referring Bench shall forward a copy of the Order of Reference to the Registrar of the Principal Bench for securing orders of the Chairman for constitution of the Full Bench and fixing the date of hearing.

53.

Conveyance of the orders of the Chairman

.-The Registrar of the Principal Bench shall, on receipt of the request as aforesaid, obtain the orders of the Chairman and convey the same to the Registrar of the Referring Bench.

54.

Notification regarding Full Bench hearing

.-The Registrar of the Referring Bench shall, immediately on receipt of orders of the Chairman, notify the parties/legal practitioners the date of hearing of the case by the Full Bench.

55.

Circulation of Full Bench decision/opinion

.-The Registrar of the Referring Bench shall circulate the opinion/decision rendered by the Full Bench to all other Benches of the Tribunal.

Chapter XI

Inspection Of Records

56.

Grant of Inspection

.-Inspection of records of a pending or decided case before the Tribunal shall be allowed only under the orders of the Registrar.

57.

Application for grant of Inspection

.- (a) Application for inspection of records as provided under sub-rule (1) or sub-rule (2) of rule 23 of the Procedure Rules, shall be in Form No. 10 and presented at the filing counter of the Registry between 10 a.m. and 3 p.m. on any working day, two days before the date on which inspection is sought, unless otherwise permitted by the Registrar.

(b)

The Judicial Branch of the Registry shall submit the application with its remarks before the Registrar, who on consideration of the same pass appropriate orders.

(c)

Inspection of records of a pending case shall not ordinarily be permitted on the date fixed for hearing of the case or on the preceding day.

58.

Fee payable for Inspection

.- (a) No fee shall be charged for inspection of records of a pending case by a party to the case or his legal practitioner.

(b)

A fee of Rs. 5 shall be payable by way of DD/IPO drawn in favour of the Registrar on any application for inspection of records of a decided case by a party to the case or his legal practitioner.

(c)

A fee of Rs. 5 shall be payable by way of a DD/IPO drawn in favour of the Registrar on any application for inspection of records of a pending or decided case by a person other than a party to the case.

59.

Mode of Inspection

.- (a) On grant of application for inspection of the records, the Section Officer in-charge of the Judicial Branch shall arrange to procedure the records of the case and allow inspection of such records on the date and time fixed by the Registrar between 10 a.m. and 12.30 p.m. and between 2.30 p.m. and 4.30 p.m. in the presence of an officer authorised

in that behalf.

(b)

The person inspecting the records shall not in any manner cause dislocation, mutilation, tampering or damage to the records in the course of inspection.

(c)

The person inspecting the records shall not make any marking on any record or paper so inspected. Copying, if any, of the documents/records inspected may be done only in pencil.

(d)

The officer supervising the inspection may at any time prohibit further inspection, if in his opinion any of the records are likely to be damaged in the process of inspection or the person inspecting the records has violated or attempted to violate the provisions of these Rules and shall immediately make a report about the matter to the Registrar and seek further orders of the Registrar. Note about the same shall be made in column (8) of the Inspection Register.

60.

Maintenance of Register of Inspection

.-The Section Officer in-charge of the Judicial Branch shall cause to maintain a Register in Form No. 8 for the purpose of inspection of documents/records and shall obtain therein the signature of the person making such inspection.

Chapter XII

Legal Practitioners Before The Tribunal

61.

Appearance of legal practitioners

.-Subject as hereinafter provided no legal practitioner shall be entitled to appear and act in any proceedings before the Tribunal unless he files into Tribunal a vakalatnamain the prescribed form duly executed by or on behalf of the party for whom he appears.

62.

Appearance on behalf of Government, etc

.- (a) Any legal practitioner appearing on behalf of the Central Government or State Government or any Government servant sued or suing in his official capacity or any authority/corporation/society notified under section 14 of the Act shall not be required to file a vakalatnamabut he shall file into Tribunal a Memo of Appearance in Form No. 11 duly signed by him.

(b)

A presenting officer other than a legal practitioner representing any of the parties referred to in sub-rule (a) shall also file a memo of appearance in Form No. 11.

63.

Nomination or engagement of another legal practitioner

.-Where a legal practitioner who has filed thevakalatnama engages or nominates another legal practitioner to appear and argue his client's case but not to act for the client, the Tribunal may permit such other legal practitioner to appear and argue.

64.

Consent for engaging another legal practitioner

.-A legal practitioner proposing to file a vakalatnamain any case or proceeding before the Tribunal in which there is already a legal practitioner on record, shall do so only with the written consent of legal practitioner on record or when such consent is refused, with the permission of the Tribunal.

65.

Restrictions on appearance

.-A legal practitioner who has tendered advice in connection with the institution of any case or other proceeding before the Tribunal or has drawn pleadings in connection with any such matter or has during the progress of any such matter acted for a party, shall not appear in any case or proceeding or other matter arising therefrom or in any matter connected therewith for any person whose interest is opposed to that of his former client, except with the prior permission of the Tribunal.

66.

Access to information

.-A legal practitioner appearing for the party in any matter before the Tribunal shall be entitled to communicate personally with or receive any information regarding the said matter from any officer of the Tribunal subject to such conditions as may be prescribed by the Tribunal.

67.

Form and execution of vakalatnama

.(a) Every vakalatnama authorising a legal practitioner to plead and act shall be in Form No. 12. The name of the legal practitioner so appointed shall be inserted in the vakalatnama before it is executed. It shall be dated at the time of its execution and of its acceptance. Its execution shall be attested by a Judicial Officer, Gazetted Officer serving in connection with the affairs of the Union or of any State in India or a legal practitioner other than the legal practitioner accepting the vakalatnama.

(b)

The authority attesting the vakalatnama under sub-rule (a) shall certify that it has been duly executed in his presence and subscribe his signature giving his name and designation. Attestation shall be made only after the name of the legal practitioner is inserted in the vakalatnama before its execution. When a vakalatnama is executed by a party who appears to be illiterate, blind or unacquainted with the language of the vakalatnama, the attestor shall certify that the vakalatnama was read, translated and explained in his presence to the executant, that he seemed to understand it and that he signed or affixed his thumb-mark in his presence.

(c)

Every vakalatnama shall contain an endorsement of acceptance by the legal practitioner in whose favour it is executed and shall also bear his address for service. If the vakalatnama is in favour of more than one legal practitioner, it shall be signed and accepted by all of them, giving the address for service of any one of them.

68.

Restriction on party's right to be heard

.-The party who has engaged a legal practitioner to appear for him before the Tribunal shall not be entitled to be heard in person unless he withdraws the vakalatnama with the leave of the Tribunal.

69.

Professional dress for the advocate

.-While appearing before the Tribunal, the advocate shall wear the same professional dress as prescribed for appearance before the High Court.

Chapter XIII

Registered Clerks Of Legal Practitioners

70.

Prohibition of employment of tout

.-No legal practitioner shall employ as his clerk any person who is a tout.

Explanation.-"Tout" means a person who procures or attempts to procure for any consideration from any legal practitioner or from any person acting on his behalf, the employment of such legal practitioner in any legal business, or who, for purposes of such procurement, frequents the precincts of the Tribunal.

71.

Disqualification for registration of clerks

.-No person who is or has been declared a tout or is an undischarged insolvent or has been convicted of an offence involving moral turpitude or has been dismissed from the service of the Government for corruption or dishonesty or is otherwise unfit to be a clerk shall be registered as legal practitioner's clerk as provided in rule 25(1) of the Procedure Rules.

72.

Registration of legal practitioner's clerks

.- (a) When an application in Form No. IV of the Procedure Rules is made by the legal practitioner for registration of his clerk and the same is allowed by the Registrar, the name of the clerk shall be entered in the Register of clerks in Register No. 9.

(b)

The Registrar may, for reasons to be recorded in writing, decline to register any clerk, who in his opinion suffers from any disqualification specified in rule 71 or is otherwise unsuitable to be registered as such.

(c)

An appeal may be filed within thirty days from the date of the order of the Registrar under sub-rule (b) to the Chairman/Vice-Chairman.

73.

Cancellation of registration

-(a) The Registrar, may for reasons to be recorded in writing, cancel the registration of any clerk after giving him and his employer an opportunity to show cause against such cancellation.

(b)

An appeal may be filed against the order of the Registrar made under sub-rule (a) within thirty days from the date of the order.

74.

Notifying registration and cancellation

.-Orders registering a clerk or cancelling the registration shall be notified on the Notice Board of the Tribunal and a copy sent to the Advocates Association.

75.

Issue of Identity Card

-(a) An Identity Card as referred to in sub-rule (3) of rule 25 of the Procedure Rules shall be issued in Form No. 13 to every registered clerk of the legal practitioner on his remitting a fee of Rs. 5 by way of IPO/DD drawn in favour of the Registrar.

(b)

The registered clerk shall carry with him the Identity Card and produce the same when required by any official of the Registry for identification.

(c)

An Identity Card once issued shall be in force for a period of five years unless cancelled earlier.

76.

Access to information by registered clerks

.-The registered clerks may communicate personally with any Sectional or Departmental Head not below the rank of a Section Officer for information regarding their employers' matters pending in the Tribunal.

77.

Carrying out corrections

.-The Section Officer in-charge of Judicial Branch may permit a registered clerk to correct any clerical or typographical mistake in any pleadings or other proceedings. The correction shall be made in the presence of the Section Officer and duly initialled by the maker as well as the Section Officer.

78.

Discharge of duties of an absentee clerk

.-In case of illness or absence on leave of a registered clerk, the Deputy Registrar or the sectional head of the Judicial Branch may on the requisition of the legal practitioner under whom such registered clerk is engaged, permit the registered clerk of another legal practitioner to discharge the absentee's duties for a specified period.

79.

Presentation and return of papers

.-Registered clerk may present or take return of papers on behalf of the legal practitioner whom he represents.

Chapter XIV

Affidavits

80.

Title of affidavits

.-Every affidavit shall be entitled "In the Central Administrative Tribunal,.....Bench at....." followed by the cause title of the application or other proceeding in which the affidavit is sought to be used.

81.

Form and contents of the affidavit

-(a) Every affidavit shall be drawn up in Form No. 14 in the first person and divided into paragraphs numbered consecutively.

82.

Corrections/erasures, etc

.-Corrections, erasures and interlineations shall be initialled by the attesor and the number of corrections made on each page indicated.

83.

Persons authorised to attest

.-Affidavits shall be sworn or affirmed before any Judicial Officer, Registrar, Joint Registrar and Deputy Registrar of the Tribunal Notary, District Registrar or Sub-Registrar, the Chief Ministerial Officer of any civil or criminal Court in the State or any Advocate.

84.

Affidavits of illiterate, blind, etc

.-Where an affidavit is sworn or affirmed by any person who appears to be illiterate, blind or unacquainted with the language in which the affidavit is written, the attesor shall certify that the affidavit was read, explained or translated by him or in his presence to the deponent and that he seemed to understand it, and made his signature or mark in the presence of the attesor in Form No. 15.

85.

Identification of deponent

.-If the deponent is not known to the attesor, his identity shall be testified by a person known to him. The identifying person shall affix his signature in token thereof.

86.

Annexures to the affidavit

.-Document accompanying an affidavit shall be referred to therein as Annexure No..... The attesor shall make the following endorsement thereon:

"This is the document marked as Annexure No.....in the Affidavit of.....

(Signature)

Name & designation of
the attesor with date."

Chapter XV

Discovery, Production And Return Of Documents

87.

Application for production of documents, form of summons

.- (a) Except otherwise provided hereunder, discovery, production and return of documents shall be regulated by the provisions of the Code of Civil Procedure, 1908 (5 of 1908).

(b)

An application for summons to produce documents shall be in Form No. III to the Procedure Rules setting out (i) the document(s) the production of which is sought (ii) the relevancy of the document(s) and (iii) in case where the production of a certified copy would serve the purpose, whether application was made to the proper officer and the result thereof.

(c)

A summon for production of documents in the custody of a public officer other than a Court shall be in Form No. 16 and shall be addressed to the concerned Head of the Department or such other authority as may be specified by the Tribunal.

88.

Suo motu summoning of documents

.-Notwithstanding anything contained in these Rules, the Tribunal may, suo motu, issue summons for production of public documents or other documents in the custody of a public officer.

89.

Marking of documents

.- (a) The documents when produced shall be marked as follows:-

(i)

If relied upon by the applicant's side they shall be numbered as "A" series.

(ii)

If relied upon by the respondent's side they shall be marked as "R" series.

(iii)

The Court exhibits shall be marked as "C" series.

(b)

The Tribunal may direct the applicant to deposit in Tribunal by way of IPO/DD drawn in favour of the Registrar a sum sufficient to defray the expenses for transmission of the records before the summons is issued.

(c)

The transmission of the records shall ordinarily be by registered post parcel.

90.

Return and transmission of documents

.- (a) An application for return of the documents produced shall be in Form No. III given under the Procedure Rules. No such application shall be entertained after the destruction of the records.

(b)

The Tribunal may, at any time direct return of documents produced subject to such conditions as it deems fit.

Chapter XVI

Examination Of Witnesses And Issue Of Commissions

91.

Procedure for examination of witnesses, issue of commissions, etc

.- The provisions of Orders XVI and XXVI of the Code of Civil Procedure, 1908 (5 of 1908) shall mutatis mutandis apply in the matter of summoning and enforcing attendance of any person and examining him on oath and issuing commission for the examination of witnesses or for production of documents.

92.

Examination in camera

.- The Tribunal may in its discretion examine any witness in camera.

93.

Form of oath/affirmation to witness

.- Oath shall be administered to a witness in the following form:-

"I do swear in the name of God/solemnly affirm that what I shall state shall be truth, the whole truth and nothing but the truth."

94.

Form of oath/affirmation to interpreter

.- Oath or solemn affirmation shall be administered to the Interpreter in the following form before his assistance is taken for examining a witness:-

"I do swear in the name of God/Solemnly affirm that I will faithfully and truly interpret and explain all questions put to and evidence given by witness and translate correctly and accurately all documents given to me for translation."

95.

Officer to administer oath

.- The oath or affirmation shall be administered by the Court Officer or the Commissioner as the case may be.

96.

Form-recording of deposition

.- (a) The Deposition of a witness shall be recorded in Form No. 17.

(b)

Each page of the deposition shall be initialled by the Members constituting the Bench or the Commissioner.

(c)

Corrections if any, pointed out by the witness may, if the Bench/Commissioner is satisfied, be carried out and duly initialled. If not satisfied, a note to that effect be appended at the bottom of the deposition.

97.

Numbering of witnesses

.- The witnesses called by the applicant/petitioner shall be numbered consecutively as PWs and those by the respondents as RWs.

98.

Grant of discharge certificate

.-Witness discharged by the Tribunal may be granted a certificate in Form 18 by the Registrar.

99.

Witness bhatta payable

.- (a) Where the Tribunal issues summons to a Government servant to give evidence or to produce documents, person so summoned may draw from the Government travelling and daily allowance admissible to him as per rules.

(b)

Where there is no provision for payment of TA and DA by the employer to the person summoned to give evidence or to produce documents, he shall be entitled to be paid as bhatta, a sum found by the Registrar sufficient to defray the travelling and other expenses having regard to the status and position of the witness. The party applying for the summons shall deposit with the Registrar the amount of bhatta as estimated by the Registrar well before the summons is issued. If the witness is summoned as a Court witness the amount estimated by the Registrar shall be paid as per the directions of the Tribunal.

(c)

The aforesaid provisions would govern the payment of bhatta to the interpreter as well.

100.

Records to be furnished to the Commissioner

.-The Commissioner shall be furnished by the Tribunal with such of the records of the case as the Tribunal considers necessary for executing the Commission. Original documents will be furnished only if a copy will not serve the purpose or cannot be obtained without unreasonable expense or delay. Delivery and return of records shall be made under proper acknowledgement.

101.

Taking of specimen handwriting, signature, etc

.-The Commissioner may, if necessary take specimen of the handwriting, signature or finger print of any witness examined before him.

Chapter XVII

Pronouncement Of Order

102.

Order

.-The final decision of the Tribunal on an application/petition before the Tribunal shall be described as "Order".

103.

Operative portion of the order

.-All orders/directions of the Bench shall be stated in clear and precise terms in the last paragraphs of the order.

104.

Corrections

.-The Member of the Bench who has prepared the order shall initial all corrections and affix his initials at the bottom of each page.

105.

Pronouncement of order

.- (a) The Bench shall as far as possible pronounce the order immediately after the hearing is concluded.

(b)

When the orders are reserved, the date for pronouncement not later than 3 weeks shall be fixed. The date so fixed shall not be changed except after due notice to all parties/counsel.

(c)

Reading of the operative portion of the order in the open Court shall be deemed to be pronouncement of the order.

(d)

Any order reserved by a Circuit Bench of the Tribunal may be pronounced at the principal place of sitting of the Bench in one of the aforesaid modes as exigencies of the situation require.

106.

Pronouncement of order by any one Member of the Bench

.- (a) Any one Member of the Bench may pronounce the order for and on behalf of the Bench.

(b)

When an order is pronounced under this Rule, the Court officer shall make a note in the order sheet that the order of the Bench consisting ofwas pronounced in open Court by the Bench consisting of..... .

107.

Authorising any Member to pronounce order

-(a) If the Members of the Bench who heard the case are no readily available or have ceased to be Members of the Tribunal, the Chairman/Vice-Chairman may authorise any other Member to pronounce the order on his being satisfied that the order has been duly prepared and signed by all the Members who heard the case. The order pronounced by the Member so authorised shall be deemed to be duly pronounced.

(b)

The Member so authorised for pronouncement of the order shall affix his signature in the order sheet of the case stating that he has pronounced the order as provided in this rule.

(c)

If the order cannot be signed by reason of death, retirement or resignation or for any other reason by any one of the Members of the Bench who heard the case, it shall be deemed to have been released from part-heard and listed afresh for hearing.

108.

Making of entries by Court officer

.-Immediately on pronouncement of an order by the Bench, the Court officer shall make necessary endorsement on the case file regarding the date of such pronouncement, the nature of disposal and the constitution of the Bench pronouncing the order. He shall also make necessary entries in the Court diary maintained by him.

109.

Transmission of order by the Court officer

-(a) The Court officer shall immediately on pronouncement, transmit the order with the case file to the Deputy Registrar (Judicial).

(b)

On receipt of the order from the Court officer, the Deputy Registrar shall after due scrutiny himself that the provisions of these Rules have been duly complied with and in token thereof affix his initials, with date on the outer cover of the order. The Deputy Registrar shall thereafter cause to transmit the case file and the order to the Judicial Branch for taking expeditious steps to prepare copies and their communication to the parties.

110.

Format of order

-(a) The format of the order of the Tribunal shall be in Form No. 19.

(b)

All orders shall be neatly and fairly typewritten in double space on one side only on durable foolscap folio paper of metric A-4 size (30.5 cms. long and 21.5 cms. wide) with left side margin of 5 cms. and right side margin of 2.5 cms. Corrections, if any, in the order shall be carried out neatly. Sufficient space may be left both at the bottom and at the top of each page of the order to make its appearance elegant.

(c)

Members constituting the Bench shall affix their signatures in the order of their seniority from right to left.

111.

Costs

-(a) Unless otherwise quantified by the Tribunal, when costs are awarded in a case, the same shall be determined as follows:-

(i) For applicant(s)

Rs. 500

Legal Practitioner's fee

Rs. 150

Expenses

(ii) For Respondent(s)

Legal Practitioner's fee

Rs. 500

Expenses

Rs. 100

(b)

Only one set of costs shall be awarded to the applicants as also when the same counsel appears for more than one respondent"> (b) Only one set of costs shall be awarded to the applicants as also when the same counsel appears for more than one respondent.

(c)

When costs are awarded a Bill of Costs in Form No. 20 shall be prepared giving the details of the costs awarded to the parties and annexed to the order.

112.

Compliance of urgent orders

-(a) Whenever the Bench passes an order, final or interlocutory, requiring immediate compliance, the Court officer shall immediately transmit the case file and the order to the Deputy Registrar (Judicial) who shall ensure prompt action on the same day.

(b)

Files with Dasti orders should be stapled with "To day" flags and superscribed with OA/TA/RA/CP/MA/PT No. with the signature of the Court officer with date.

113.

Placing copies/common orders

.-When more than one case is disposed of by a common order, the Judicial Branch shall keep the original order in the main case and a certified copy in the other connected case files. In the order sheet of the connected case(s), the Section Officer in-charge of the Judicial Branch shall note that the original order is kept in the main case file (giving its number).

114.

Indexing of case files disposal

.-After communication of the order to the parties/legal practitioners, the official concerned shall arrange the records with pagination and prepare the Index Sheet in Form No. 21. He shall affix initials and then transmit the records with the Index sheets to the records room.

115.

Transmission of files/records/orders

.-Transmission of files/records of the cases/orders shall be made only after obtaining acknowledgement in the movement register maintained at different sections/levels as per the directions of the Registrar.

116.

Copies of orders in Library

-(a) The Section Officer of the Judicial Branch shall send copies of every order (final) to the Library.

(b)

Copies of all orders received in each month shall be kept at the Library in a separate folder, arranged in the order of date of pronouncement, duly indexed and stitched.

(c)

At the end of every year a consolidated index shall also be prepared and kept in a separate file in the Library.

(d)

The order folders and the indices may be made available for reference in the Library to the legal practitioners.

Chapter XVIII

Grant Of Certified Copies And Free Copies

117.

Form and fee of application

-(a) Every application for grant of certified copy shall be in Form No. 22 and accompanied with a non-refundable fee of Rs. 5 (Rupees five only) in the form of I.P.O./D.D. drawn in favour of the Registrar and payable at the place of the Bench of the Tribunal.

(b)

If the certified copies applied for are more than one document in the same cases, only one copy application need be filed.

118.

Right of the party to obtain certified copy

.-A party to an application/petition or his legal practitioner shall be entitled to obtain certified copy of the record, proceeding or original document filed in case on payment of prescribed fee.

119.

Application for copies by stranger

.- (a) Applications for copies of documents (other than orders) by persons not parties to the proceedings shall be allowed only by order of the Registrar obtained on a duly verified petition in Form No. III of the Procedure Rules, setting forth the purpose for which the copy is required on payment of prescribed fee.

(b)

Copies of orders can, however, be granted to any person on payment of prescribed fees.

120.

Register of copy application and requisition register

.- (a) A Register of Copy Application shall be maintained in Register Form No. 10 and a Requisition Register in Register Form No. 11 in the copying Branch.

(b)

Entries in respect of urgent copy applications shall be underlined in red ink/pencil.

121.

Copying fee

.- The copying fee payable for obtaining an ordinary copy shall be at the rate of Re. 1 per page and for urgent copy at the rate of Rs. 2 per page irrespective of the number of words/lines in each page.

122.

Scrutiny of copy application, requisitioning of case records and rectification of defects

.- (a) If the application is in order necessary entries shall be made in the Register of Copy Applications and the Requisition Register and the same sent to the official-in-charge of records. The officer-in-charge of the records shall promptly transmit the records alongwith the application after making an entry in the application and initialling the same.

(b)

If the application is found to be defective the same shall be notified on the Notice Board of the Registry. If the defects are not rectified within three days from the date of such notification, the copy application shall be struck off. The application shall be deemed to have been made on the date of rectification of all defects.

123.

Determination of additional copying fee

.- On receipt of the records of officer-in-charge of copying section after satisfying that the records are complete shall determine the additional copying fee payable over and above the copying fee of Rs. 5 already paid and make an entry thereof in the application with his initials. Additional fee payable shall be notified on the Notice Board of the Registry.

124.

Remittance of additional copying fee

.- Additional copying fee shall be remitted by the applicant between 10.30 a.m. and 4.30 p.m. in the form of IPO/DD drawn in favour of the Registrar and payable at the place of the Bench within two days, in the case of urgent copy, and within seven days in the case of ordinary copy from the date of notice. If the additional fee payable is not remitted within the same notified, the application shall be struck off.

125.

Order of preparation of certified copy

.- Certified copies shall be prepared in the order in which they become ready in all respects. Urgent applications shall take precedence over all ordinary applications.

126.

Time limit for issue of urgent/ordinary copy

.- Urgent copy shall be delivered to the applicant as far as possible within three days and ordinary copy within ten days from the date the application is ready in all respects.

127.

Notifying when copies are ready for delivery and consequence of not taking delivery

-(a) On each working day before 11.30 a.m., the officer-in-charge of the copying branch shall cause to prepare in duplicate in Form No. 23, a list of cases in which certified copies are ready for delivery and publish one copy of the same on the notice board of the Registry with his signature, and the other copy shall be retained for record.

(b)

If the applicant fails to take delivery within three months, the certified copy prepared shall be destroyed and the copying fee paid forfeited to Government.

128.

Proper accounting of copying fee received

-.The Officer-in-charge shall ensure that the copying fee received in the registry is promptly accounted in the IPO/DD Register and transmitted to the cash section for crediting them to the Government account.

129.

Preparation and comparison of certified copy

-(a) Certified copy shall be made by photocopying process or by typing. When the copy is so made, it shall be compared by the official-in-charge of preparing the copy with the document of which the copy is made, aided by another official in the copying branch. He shall, after satisfying himself that the copy prepared faithfully and legibly reproduces the document desired, append a certificate as under and affix his initials:-

"Certified that this is a true and accurate copy of the document/order as in the case file (OA/RA/TA/CP/MA/PT No...../20.....) and that all the matter appearing therein have been legibly and faithfully copied with no modifications".

(b)

He shall affix an endorsement on the last page of the copy as under and put his initials:-

(i)

Serial No. of the copy of application:

(ii)

Name of the applicant:

(iii)

Date of presentation of application:

(iv)

No. of pages:

(v)

Copying fee charged/urgent or ordinary:

(vi)

Date of preparation of copy:

(vii)

Date on which copy is ready:

(viii)

Date of delivery:

(c)

The certificate and the endorsement shall be made with the help of a rubber stamp got prepared for that purpose. The entries however shall be made in ink.

(d)

The officer authorised to issue the copy shall affix his signature below the endorsement and cause to affix the seal of the Tribunal on all pages of the copy and also initial wherever there are corrections.

130.

Re-transmission of case records

-.On completion of the preparation of the certified copy, the officer-in-charge of the copying section shall re-transmit the records of the case to the concerned branch, after making necessary entries in the Requisition Register and obtain acknowledgement of the official, who receives back the records, in the relevant column of the Register.

131.

Mode of delivery of certified copy

.-At the time of the delivery of the certified copy, the official concerned shall obtain the signature of the applicant in the relevant column in the Register of Copy Applications, record the date of such delivery on the copy application and fill up relevant column regarding the date of delivery in the endorsement stamped on the certified copy.

132.

Request for certified copy by post

.- (a) Where the applicant desires to have the certified copy sent to him by post, he shall send an additional sum of Rs. 10 by way of IPO/DD drawn in favour of the Registrar and payable at the place of the Bench for defraying the postal charges, etc.

(b)

If the amount sent is found to be inadequate, the applicant shall be intimated to remit the said amount within the time specified. On receipt of the intimation, the applicant shall remit the amount in the manner provided in sub-rule (a) above and within the time specified.

133.

Intimation of rejection

.-If for any reason the copy application is rejected, due intimation be given to the applicant and the refundable amount, if any, returned to him.

134.

Supply of free copy only once

.-Once free copy of the order is sent as provided in rule 22 of the Procedure Rules, the Tribunal shall not be required to furnish any more free copies.

135.

Certifying of free copies

.-Every free copy issued to a party or his legal practitioner in accordance with the Procedure Rules shall be certified to be "True Copy" and shall be superscribed "FREE COPY UNDER RULE 22 OF CAT (PROCEDURE) RULES" with a rubber stamp and signed by the officer authorised in that behalf. He shall also cause to enter the date and other details of furnishing of such free copy in the Register of Free Copies in Register Form No. 12.

136.

Time for furnishing free copies

.- (a) Judicial Branch of the Registry shall issue free copies of the order to the parties or their legal practitioners as provided under rule 22 of the Procedure Rules as far as possible within seven days from the date of pronouncement of the order.

(b)

If the free copy of the order is delivered by hand to parties/their legal practitioners, the officer-in-charge shall obtain acknowledgement therefor in the relevant column in the Register of Free Copies.

137.

Furnishing of free copy in a joint application

.-When a joint application/petition is made, only one free copy of the order contemplated by rule 22 of the Procedure Rules shall be issued, either to their legal practitioners or if they are appearing in person, to any one of the applicants.

138.

Furnishing of corrected free copy of order

.-Whenever clerical or typographical errors/mistakes in an order are rectified subsequent to the issue of the free copy thereof, the Registrar shall cause to issue a corrected free copy of such order to the parties/their legal practitioners in the prescribed manner.

Chapter XIX

Appeal To Supreme Court

139.

Manner of service of order notice issued by the Supreme Court of India

.-Service of orders/notices on respondents ordered by the Supreme Court of India in an appeal or petition pending before that Court shall be effected in the manner provided by the Supreme Court Rules, 1966 as amended from time to time.

140.

Steps to comply with Supreme Court directions

.- (a) Unless otherwise ordered by the Supreme Court, the Appellant or his Advocate shall be notified to deposit the transmission charges and cost of preparation of record, if any, etc., within 15 days of the receipt of the notice.

(b)

When the party or Advocate fails to deposit the amount as aforesaid, the Registrar shall forthwith submit a report thereof to the Registrar of the Supreme Court of India.

141.

Register of S.L.Ps./Appeals

.- (a) A register in Form No. 13 shall be maintained in regard to S.L.Ps./Appeals against the orders of the Tribunal to the Supreme Court and necessary entries therein be promptly made by the Judicial Branch.

(b)

The register shall be placed for scrutiny by the Chairman/Vice-Chairman in the first week of every month.

142.

Placing of Supreme Court orders before Chairman/Vice-Chairman/Members

.- Whenever an interim or final order passed by the Supreme Court of India in an appeal or other proceeding preferred against a decision of the Tribunal is received, the same shall forthwith be placed before the Chairman/Vice-Chairman/Members for information and kept in the relevant case file. Immediate attention of the Registrar shall be drawn to the directions requiring compliance.

143.

Circulation of the orders of the Supreme Court

.- All orders of the Supreme Court including dismissal of S.L.Ps. shall be circulated to the Members of the Bench whose decision was challenged before the Supreme Court and kept in the relevant case file.

144.

Registrar to ensure compliance of Supreme Court orders

.- It shall be the duty of the Registrar to take expeditious steps to comply with the directions of the Supreme Court.

Chapter XX

Retention, Preservation And Destruction Of Records

145.

Procedure regarding retention, preservation and destruction of records

.- Retention, preservation and destruction of records shall be done in accordance with the rules contained in the CAT (Destruction of Records) Rules, 1990 given in Appendix V as amended from time to time.

146.

Receipt, scrutiny and custody of records

.- The record keeper shall be the custodian and responsible for the records lodged in the record room. He shall receive the records sent to the record room and scrutinise the records within three days of the date of receipt of records in the record room.

147.

Rectification of defects/securing of missing records

.- If on such scrutiny, any defect or missing of documents is found in the records, the Record Keeper shall intimate the same and remit the records back to the branch/section from which the records were received. Thereupon, the Section Officer-in-charge of the concerned branch/section shall cause to take steps to rectify the defects/omissions so pointed out, and after such rectification re-transmit the records to the record room within three days of its receipt from the record room.

148.

Maintenance of Register of records received in the record room

.- The Record Keeper shall maintain a register in Register Form No. 14 of Records received in the record room.

149.

Entry regarding destruction

.- Entries regarding destruction shall be made in the relevant columns of REGISTER FORM NO. 14.

150.

Preservation of records requiring permanent retention

.-Records required to be preserved permanently shall be stacked in bundles of convenient size, arranging them in chronological order. The bundle shall be wrapped in "Kora Cloth" on which shall be attached labels indicating in chronological order register numbers of the cases included in each bundle. Such bundles shall be arranged serially and kept in the records room.

151.

Retention of records beyond prescribed period

.-The Registrar may for reasons to be recorded in writing and with prior permission of the Chairman order that record of any particular case be preserved beyond the prescribed period provided under the Destruction Rules.

Chapter XXI

Miscellaneous

152.

Circuit Benches

.-The provisions of these rules shall mutatis mutandis govern applications entertained by circuit Benches subject to such adaptations as may by order be made by the concerned Vice-Chairman on being satisfied that it is necessary to do so in the interest of justice.

153.

Use of computers

.- (a) The Chairman may issue such orders or directions as may be necessary for complying with the provisions of the relevant Rules of Practice with the aid of the computer and for effective use of the computer facility as and when introduced.

(b)

Compliance with such orders or directions issued by the Chairman from time to time shall be deemed to be due compliance of the provisions of the relevant Rules of Practice.

154.

Classification of cases subjectwise/departmentwise

.- (a) The scrutiny branch of the Registry shall at the time of the scrutiny make classification of the cases as follows:-

(i)

Departmentwise;

(ii)

Subjectwise; and

(iii)

Cases which can be heard by a Single-Member Bench.

(b)

The departmentwise classification shall be made in accordance with Appendix VI, as may be modified by the Chairman from time to time.

(c)

Subjectwise classification shall be made in accordance with Appendix VII, as may be modified by the Chairman from time to time.

(d)

Single Member Bench cases shall be classified in accordance with Appendix VIII as may be modified by the Chairman from time to time.

(e)

The classification as above shall be entered in the relevant columns in the report of scrutiny in Form No. 2/Form No. 3, Order Sheet in Form 4 and Facing Sheet of the final cover in Form No. 5, referred to in rules 11 to 13 of these Rules.

155.

Weekly and monthly statements-Furnishing of

.- (a) The Registrar of each Bench shall prepare a weekly progress report in Form 24 and circulate among all the Members of the Bench concerned.

(b)

The Vice-Chairman of the Bench concerned shall forward a consolidated monthly progress report in Form No. 24 to the

Chairman before the 7th of each month.

(c)

The Registrar of the concerned Bench shall prepare a monthly statement in two parts as in Form 25 regarding filing, disposal and pendency of cases and forward the same to the Registrar of the Principal Bench before the 7th of each month.

156.

Inspection of Registry

-(a) The Registrar or the Deputy Registrar designated by him shall conduct inspection of the sections twice a year, viz., for the period from 1st January to 30th June and 1st July to 31st December, on such date as may be found convenient.

(b)

The report of inspection of the Judicial Branch, Library, Administrative Branch and Record Room shall be as in Schedules I to IV to Appendix IX, as may be modified by the Chairman from time to time.

(c)

The Section Officer concerned shall promptly comply with the directions of the Registrar and submit a report about due compliance to the Registrar within such time as the Registrar may grant.

(d)

The Registrar shall submit a report to the Chairman/Vice-Chairman containing brief summary of his inspection of the Registry, directions given by him to the sections and the steps taken for due compliance with such directions.

157.

Due compliance with the Act, Rules of Procedure and the Rules of Practice

.-The Registrar or any officer authorised by him may, for the purpose of satisfying himself that the provisions of the Act, the Rules of Procedure and the Rules of practice are duly complied with, make such enquiry as he deems fit and call upon such party, as he deems necessary to appear before him and pass such orders as he deems proper.

158.

Removal of doubt/difficulty

.-If in the matter of implementation of these rules any doubt or difficulty arises, the same shall be placed before the Chairman and his decision thereon shall be final.

FORM NO. 1

[See rule 4(a)]

FORM OF INDEX

IN THE CENTRAL ADMINISTRATIVE TRIBUNAL

.....BENCH

O.A./R.A./C.P.(Civil/Criminal)/M.A./T/P 19.../20....

A.....}

}Applicant/Petitioner

B.....}

By Legal Practitioner Mr./Ms.

A.....}

} Respondents

B.....}

By Legal Practitioner/Government Pleader.

INDEX

Sl.

No.

Brief description of proceedings/documents

Page No.

From

To

Signature of the applicant Legal Practitioner

FOR USE BY THE REGISTRY

Date of presentation/Filing

Date of Receipt by post

Registration (Diary) No.

.....

Signature

For Registrar

FORM NO. 2

[See rule 11 (b)]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

Diary No.

Report on the scrutiny of Application

Presented by :.....

Date of presentation :.....

Applicant (s) :.....

Respondent (s) :.....

Nature of grievance :.....

No. of applicants :.....

No. of Respondents:.....

*If S.B.

CLASSIFICATION

Subject.....(No.....)

Department:.....(No.....)

* 1. Is the application in the proper form?

(Three complete sets in paper book form in two compilations)

2. Whether name, description and address of all the parties Been furnished in the cause title?

3. (a) Has the Application been duly signed and verified?

(b)

Have the copies been duly signed?

(c)

Have sufficient number of copies of the application been filed?

4. Whether all the necessary parties are impleaded?

5. Whether English translation of documents in a language other than English or Hindi been filed?

6. Is the application in time?

(See section 21)

7. Has the Vakalathnama/Memo of appearance/authorization been filed?

8. Is the application maintainable?

(u/s 2, 14, 18 or U.R. 8 etc.)

9. Is the application accompanied by IPO/DD for Rs.50?

10. Has the impugned orders original/duly attested legible copy been filed?

11. Have legible copies of the annexures duly attested been filed?

12. Has the Index of documents been filed and pagination done properly?

13. Has the applicant exhausted all available remedies?

14. Has the declaration as required by item 7 of Form I been made?

15. Have required number of envelopes (file size) bearing full address of the respondents been filed?

16. (a) Whether the reliefs sought for, arise out of single cause of action?

(b)

Whether any interim relief is prayed for?

17. In case an M.A. for condonation of delay is filed, is it supported by an affidavit of the applicant?

18. Whether this case can be heard by Single Bench?

19. Any other point?

20. Result of the scrutiny with initial of the Scrutiny Clerk.

Section Officer

Deputy Registrar

REGISTRAR

FORM NO. 3

[See rule 11]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

Diary No.....20.....

C.P. (Civil/Criminal).....20.....

Between

.....Petitioner(s)

By

.....

(Name of the Counsel, if any)

And

.....Respondent(s)

By

.....

(Name of the Counsel, if any)

Subject : (No.....)

Department : (No.....)

REPORT OF THE SCRUTINY OF CONTEMPT OF COURT PETITION

(CIVIL/CRIMINAL)

1. Whether the name (including as far as possible, the name of Father/mother/husband), age, occupation and address of the Petitioner(s) and the respondent(s) are given?

Note :- Where respondent is an officer, his name, designation, and office address above are enough.

2. Whether the parties impleaded as petitioner(s) and respondent(s) are proper?

Note :- (a) In case of civil contempt for disobeying the order of the Tribunal, it is the party in whose favour the direction is issued that can be impleaded as petitioner and the party against whom the direction is issued can be impleaded as the respondent.

(b)

In case of criminal contempt, the party who is alleged to have committed contempt, that can be impleaded as respondent.

3. Nature of the Contempt (Civil/Criminal) and the provisions of the Act invoked?

4. (a) Date of alleged Contempt?

(b)

Date of filing of the Contempt Petition?

(c)

Whether the petition is barred by limitation under section

20. of the Contempt of Courts Act, 1971?

5. (a) Whether the grounds and material facts constituting the alleged contempt are given?

(b)

Whether the grounds and facts alleged in the petition are divided into paragraphs and numbered?

(c)

Whether the petition is accompanied by supporting documents or certified/photostat (attested) copies of the original thereof?

(d)

If the petitioner relies upon any other document(s) in his possession, whether copy of such document(s) is/are filed along with the petition?

(e)

Whether the petition and its annexures have been filed in a paper-book from and duly indexed and paginated?

(f)

Whether three complete sets of the paper-books have been filed?

(g)

Whether equal number of extra copies of paper-books have been filed in case there are more respondents than one?

6. Whether the nature of the order sought from the Tribunal is s stated?

7. Whether the petition is supported by an affidavit sworn to by the petitioner verifying the facts relied upon?

Note :- No affidavit is required if the Motion is by Attorney General/Solicitor General/Additional Solicitor General.

8. Whether the petitioner or his Advocate have signed the petition indicating the place and date?

9. In case of Civil Contempt whether the petition is accompanied by a certified copy of the judgement/decreed order/writ/undertaking alleged to have been disobeyed by the alleged contemner?

10. (a) In case of criminal contempt, not covered by section 14* of the Contempt of Courts Act, whether the petitioner has produced the consent obtained from the Attorney General/Solicitor General/Additional Solicitor General?

(b)

If not, whether the petition contains the reasons thereof?

*Contempt committed in the presence or hearing of the Member(s)

11. Whether the petitioner had previously made a Contempt Petition on the same facts? If so, have the following been furnished :

(a)

Number of the petition?

(b)

Whether the petition is pending? And

(c)

If disposed of, nature/result of the disposal with date?

12. Whether the craft charges are enclosed in a separate sheet?

FOR ATTENTION

Orders on the administration side have to be obtained from the Chairman/Vice Chairman or Member designated in case of action for criminal contempt, as required by Rule 7 (ii) before placing for preliminary hearing.

FORM NO.

4.

[See rule 12]

IN THE CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

ORDER SHEET

Application No.....of 19...../20.....

Applicant(s)

Respondent(s)

Advocate for Applicant(s)

Advocate for Respondent(s)

Notes of the Registry

Orders of the Tribunal

FORM NO. 5

[See rule 13]

FILE A/B/C

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

(SB/DB)

TRANSFERRED/ORIGINAL APPLICATION NO.

REVIEW APPLICATION NO.

PETITION FOR TRANSFER NO.....}

}of 20.....

C.P. (CIVIL/CRIMINAL) NO.....}

.....}

.....}
}APPLICANT(S)
BY ADVOCATE SHRI.....}

Versus

.....}
.....}
} RESPONDENT(S)
BY ADVOCATE SHRI.....}

MEMO OF HEARINGS

SUBJECT:

DEPARTMENT:

Nature of Grievance:

Date of impugned Order:

Date of

Presentation

Representation

Date of Registration:

Date of Admission:

Date and nature of final disposal:

R.A., if any filed & number thereof:

Nature of disposal of R.A.:

C.P., if any filed & number thereof:

Result of C.P.:

S.L.P./Appeal, if any filed & number thereof:

Result of S.L.P./Appeal filed:

Date of consignment of Record Room:

FORM NO. 6

[See rule 17]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

NOTIFICATION

The papers filed in the following cases have been found on Scrutiny to be defective. Hence, it is hereby notified that the applicant(s) Respondent(s) or his/their Legal practitioner is/are required to rectify the defects in the Registry itself if they are formal in nature or to take back the papers for rectification of the defects and representation if they are not formal in nature, within the time shown against each case.

Sl.

No.

Diary No/ Appln. No.

Papers in which defects are noticed

By whom defects are to be rectified

Whether the defects are formal in nature or not

Time granted for rectification/representation

1

2

3

4

5

6

1.

2.

3.

4.

Dated thisdate of20.....

REGISTRAR

FORM NO. 7

[See rule 25]

IN THE CENTRAL ADMINISTRATIVE TRIBUNALBENCH

at

No..... of 20.....

Between

.....Applicant(s)

By Advocate Shri

and

.....Respondents

By Advocate Shri

PROCESS MEMO

Please issue notice/process to the following parties and a sum of Rs.....is paid herewith by way of IPO/DD No.....of

Rank of the Party in the Proceeding

Name of the Party

Address for service

1

2

3

Place:.....

Date:.....

Counsel for the Petitioner/Applicant

Central Government Standing

Counsel/Government Pleader

FORM NO. 8

[See rule 29]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

at

Original Application No.....20.....

.....Applicant

Represented by

Advocate Shri

versus

.....Respondents

Represented by

Advocate Shri

To

.....

.....

.....

Whereas an application filed by the above named applicant under section 19 of the Administrative Tribunal Act, 1985, as in the copy annexed hereunto has been registered and upon preliminary hearing the Tribunal has directed that you should be given an opportunity to show cause why the application should not be admitted.

Notice is hereby given to your to appear in this Bench of the Tribunal in person or through a Legal Practitioner/Presenting Officer in this matter at 10.30 a.m. of theday of20.....to show cause, why the application should not be admitted. If you fail to appear, the application will be heard and decided in your absence.

Given under my hand and the seal of this Tribunal, this the.....day of.....20.....

By order of the Tribunal

Registrar

FORM NO. 9

[See rule 29]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

at

Original Application No.....20.....

.....Applicant(s)

(By Advocate Shri)

versus

.....Respondent(s)

(By Advocate/Central Government/

Standing Counsel/Government

Pleader Sh.....)

To

.....

.....

.....

Whereas an application filed by the above named applicant(s) under section 19 of the Administrative Tribunal Act, 1985, as in the copy annexed hereunto has been registered and upon preliminary hearing the Tribunals admitted the application.

Notice is hereby given to you that if you wish to contest the application, you may file your reply along with the documents in support thereof and after serving copy of the same on the applicant or his Legal Practitioner within 30 days of receipt of the notice, before this Tribunal, either in person or through a legal practitioner/Presenting Officer appointed by you in this behalf. In default, the said application may heard and decided in your absence on or after that date without any further notice.

Issued under my hand and the seal of the Tribunal this the.....day of20.....

(By order of the Tribunal)

Registrar

FORM NO. 10

[See rule 57(a)]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

Pending/Disposed of

OA/RA/CP.....NO.....of20.....

.....Applicant(s)

versus

.....Respondent(s)

APPLICATION FOR INSPECTION OF DOCUMENTS/RECORDS

I hereby apply for grant of permission to inspect the document/records in the above case. The details are as follows :-

1.

Name and address of the person seeking inspection:

2.

Whether he is a party to the case/his legal practitioner and if so, his rank therein:

3.

Details of the papers/documents sought to be inspected:

4.

Reasons for seeking the Inspection:

5.

The date and duration of the inspection sought:

6.

Whether any fee is payable and if so, the mode of payment:

Place.....

Date.....

Applicant

Office Use:

Granted inspection forhours on/rejected

Registrar

CAT.....

FORM NO. 11

[See rule 62]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

OA/RA/CP/PT/MA.....of20.....

.....Applicant(s)

versus

.....Respondent(s)

MEMO OF APPEARANCE

I,,having been authorized.....(here furnish the particulars of authority) by the Central/State Government/Government Servant/..... authority/corporation/society notified under section 14 of the Administrative Tribunals Act, 1985, hereby appear for applicant No...../Respondent No..... and undertake to plead and act for them in all matters in the aforesaid case.

Place:.....

Date:.....

.....

Signature and Designation of the Counsel

Address of the Counsel for service

FORM NO. 12

[See rule 67]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

OA/RA/CP/PT/.....of20.....

.....Applicant(s)

versus

.....Respondent(s)

I,, Applicant No...../Respondent No..... in the above application/petition do hereby appoint and retain Shri..... Advocate/s to appear, plead and act for me/us in the above application/petition and to conduct and prosecute all proceedings that may be taken in respect thereof including Contempt of Court Petitions and Review Applications arising there from and applications for return of documents, enter into compromise and to draw any moneys payable to me/us in the said proceeding.

Place:.....

Date:.....

.....

Signature of the Party

"Accepted"

.....

Signature with date

(Name of the Advocate)

Executed in my presence

*Signature with date

(Name and Designation)

Name of the Advocate

Name and address of the

Advocate for service

* The following certification to be given when the party is unacquainted with the language of the vakalath or is blind or

illiterate.

The contents of the vakalath were truly and audibly read over/translated intolanguage known to the party executing the vakalath and he seems to have understood the same.

.....

Signature with date

(Name and Designation)

FORM NO. 13

[See rule 75(a)]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

Non-Transferable

Passport size photo to be affixed

Identity Card Reg. No.....

Shri.....Aged.....

S/o Shri(Address)

has been registered as a Clerk of Shri.....

Legal Practitioner.....

.....

(Address)

and that he is entitled in connection with his employer's business to have access to the Registry of the CAT.....Bench.The Identity Card is valid from.....Specimen signature of the Registered Clerk.

Specimen signature of the Advocate.Seal of the Tribunal

Deputy Registrar(J)

Date.....

FORM NO. 14

[See rule 81(a)]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

OA/RA/TA/PT/CP(Civil/CP (Criminal)/No.....of20.....

.....Applicant(s)

versus

.....Respondent(s)

AFFIDAVIT

I,aged.....years, son/daughter/wife of (name and occupation of the deponent).....residing at..... do hereby swear in the name of God/solemnly affirms and state as follows:-

Para 1

Para 2

Para 3

.....

.....

.....

Contents of paragraphs Nos.....toare within my personal knowledge and contents of paragraph Nos.....toare based on information received by me which I believe the same to be true (state the source of information wherever possible and the grounds for belief, if any)

.....

.....

Place:.....

Date:.....

No. of corrections on page Nos.

.....

Signature of the Deponent

Name in Block letters

Identified by:

*

.....Sworn/solemnly affirmed
before me on this theday of20.....

.....

Signature

(Name and designation of the

Attesting Authority with seal)

* To add endorsement in Form No.15

when necessary.

FORM NO. 15

(See rule 84)

CERTIFICATION WHEN DEPONENT IS UNACQUAINTED WITH THE LANGUAGE OF THE AFFIDAVIT OR IS BLIND OR ILLITERATE.

Contents of the affidavit were truly and audibly read over/translated intolanguage known to the deponent and he seems to have understood the same.

.....

(Signature)

Name and designation with date

FORM NO. 16

[See rule 87(c)]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

OA/RA/CP (Civil/Crl.)/PT/MA No..... of 20.....

Between

.....Applicant/s

By Advocate Shri

And

.....Respondent/s

By Advocate Shri

To

Whereas the Tribunal suo motu or on consideration of the request made by Shri.....(Applicant/Respondent No.) having been satisfied that production of the following documents/records under your control/custody is necessary for proper decision of the above case, you are hereby directed to cause production of the said documents/records before this Tribunal/forward duly authenticated copies thereof on or before theday of20.....

(Enter description of documents requisitioned)

"By Order of Tribunal"

Registrar.

Date:.....

FORM NO. 17

[See rule 96]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

TA/OA/RA/CP (Civil/Crl.)/PT/MA No..... of /20.....

DEPOSITION OF PR/RW

1. Name:

2. Father's/Mother's/Husband's name:

3. Age

4. Occupation:

5. Place of Residence and address:

6. Name of the Officer administering the oath/affirmation:

7. Name of the Interpreter if any, duly sworn/solemnly affirmed:

Duly sworn/solemnly affirmed

Date.....

Examination-in-chief : By

.....

.....

Cross-examination:BY

.....

.....

Re-examination, if any:

.....

.....

(Signature of the witness on each page)

Statement was read over/translated to the witness who admitted it to be correct.

.....

Signature of the Member of the

Bench/Commissioner

With date

FORM NO. 18

(See rule 98)

CERTIFICATE OF DISCHARGE

Certified that.....appeared before this Tribunal as a witness/in/OA/

RA/TA/PT/CP (Civil)/Crl.)/MA No.....of 20....., on behalf of the applicant/petitioner/respondent/as court witness on

this theday of 20.....and that he was relieved aton He was paid/not paid any T.A. and

D.A./Batta of Rs.....

.....

Signature of Registrar

Date:.....

(Seal of the Tribunal)

FORM NO. 19

[See rule 110]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

FORMAT OF ORDER

OA/TA/CP (Civil/Crl.)/MA/PT No..... of .../20.....this theday of20.....

Shri/Smt.....(A)/(J)

Shri/Smt.....(A)/(J)

1.

2.

3.

.....Applicant(s)(Here enter name and full address of applicant(s))

By Advocate Shri.....

Versus

1.

2.

3.

.....Respondent(s)

(Here enter name and full address of respondent(s))

By Advocate Shri.....

Central Government Standing Counsel/Government Pleader

ORDER

*.....

Para 1.

Para 2.

Para 3.

.....
.....
.....

(Signature)

.....

Name

Vice-Chairman/Member

(Signature)

.....

Name

Chairman/Vice-Chairman/Member

* Here enter name of the Chairman/Vice-Chairman/Member dictating or writing the order.

Here put the initials of the Stenographer who types the order.

FORM NO. 20

[See rule 111(c)]

BILL OF COSTS

(To be annexed to the order)

OA/RA/TA/PT/CP/MA No..... of ...20.....

Costs awarded to Applicant No...../Respondent No..... and payable by Applicant No...../Respondent No.....

(i)

Legal Practitioner's fee :

(ii)

Expenses

Rs.....

Rs.....

Total Rs.....

Seal of the Tribunal

.....

(Signature)

Registrar/Deputy Registrar

Note :- No bill of costs need be prepared or annexed, if costs are not awarded.

FORM NO. 21

[See rule 114]

IN THE CENTRAL ADMINISTRATIVE TRIBUNALBENCH

OA/TA/RA/CP/MA/PT No.....of20.....

.....Applicant(s)

versus

.....Respondent(s)

INDEX SHEET

Serial No.

DESCRIPTION OF DOCUMENTS

PAGE

Certified that the file is complete in all respects.

.....

Signature of S.O.

.....

Signature of Dealing Hand

Form No. 22

(See Rule 117)

Central Administrative TribunalBench

OA/RATA/PT/CP/Civ./Crl./ MA20.....

____ Applicant(s)

Versus

____ Respondent(s)

APPLICATION FOR GRANT OF CERTIFIED COPY

1. Name & address of the applicant:

2. Whether the applicant is a party to the case:

If not whether the applicant under Rule 119 is filed:

3. Whether the cases is pending or disposed of :

4. Description with date of the documents of Which date of the document of which applied for :

5. No. of copies required and nature of a Applicant [whether urgent or ordinary]

6. Details of the fee remitted also with the Applicant:

Dated the..... day of

Signature of the applicant

Counsel of the applicant

FOR OFFICE USE

Granted/Rejected

Additional copying Fee payable/paid & details there of:

(Initials of the Officer-In-Charge)

Form No. 23

(See Rule 127)

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

NOTIFICATION OF CERTIFIED COPIES READY FOR DELIVERY

Sl.

No.

Copy Application

No.

Name of the Applicant

Case No.

Date on which copy is ready for delivery

1

2

3

4

5

.....
(Signature of Officer-in-charge with date)

Form No. 24

[See Rule 155(a) & (b)]

CENTRAL ADMINISTRATIVE TRIBUNALBENCH

Part I

.....BENCH

STATEMENT SHOWING DISPOSAL OF CASES DURING

THE WEEK/MONTH.....

Members of the Bench

Sitting Days

No.

of cases for Admission

Cases admitted

No.

of cases restored (Excluding M.A.S.)

No.

of cases disposed of at the Admission stage

No.

of cases disposed of at the final hearing stage

Total disposal

(6+7)

No.

of cases reserved for Judgment

Full day

Part of a day

Reserved Matters

Oral

1

2

3

4

5

6

7

8

9

Part II

.....Bench

CATEGORY-WISE STATEMENT OF INSTITUTION AND DISPOSAL FOR
THE WEEK/MONTH.....

Category of Cases

Fresh Institution

No. of cases Restored/Remanded

Disposal

Arrears increased by (+) or decreased by (-) (1+2-3)

1

2

3

4

T.As.

O.As.

R.As.

R.As. (BY circulation)

Total

P.Ts.

M.As.

Total

P.Ts.

M.As.

Total

Date

[See Rule 155(c)]

Part I

STATEMENT SHOWING THE POSITION REGARDING INSTITUTION,
DISPOSAL AND PENDENCY OF CASES FOR THE MONTH OF
IN RESPECT OFBENCH

No. of cases pending at the beginning of the month

Cases instituted/received during the month

Total for disposal

Cases disposed of during the month

No. of cases pending at the end of the month

Cumulative Figures total of disposal from 1st January

A

B

C

D

E

F

Received by Transfer

Freshly instituted

Total 1+2

Received by Transfer

Freshly instituted

Total 4+5

Out of cases received by transfer

Out of cases freshly instituted

Total 9+10

1

2

3

4

5

6

7

8

9

OA

TA

CPs

RA

Total

MA

G. Total

Part II

YEAR-WISE BREAK-UP OF PENDING CASES

Name of Bench

Category of cases

1975

1976

1977

1978

1979

1980

1981

1982
 1983
 1984
 1985
 1986
 1987
 1988
 1989
 1990
 1991
 1992
 TA
 DB
 SB
 OA
 DB
 SB
 CP
 DB
 SB
 CA
 DB
 SB
 RA
 DB
 SB
 MAs
 DB
 SB

Note:- The number of cases pending at the places where there is a Bench of the Tribunal (Other than Principal Seat) or where a Circuit sitting is held and the number of cases disposed of in each such Bench of circuit sitting may be furnished separately.

Note:- OA denotes Original Applications

Instructions:

TA denotes Transferred Applications

1. Due date of receipt of the statement in P.B. is 7th of the following month.

CA denotes Civil Applications

CP denotes Contempt Petitions (Civil/Criminal)

2. Total must cross tally.

RA denotes Review Applications

3. Information be furnished in figures.

MA denotes Miscellaneous Applications

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

FORM OF REGISTER NO. 1

[See rule 10(b)]

INWARD REGISTER

Dy. No.

Nature of the Application/Pleadings, etc. received

Name of the party/Legal Practitioner Presenting

Application fee/Additional process fee paid

Initial with date of the receiving clerk

Date of transmission to Scrutiny Branch

Initial of the Receiving Clerk in the Scrutiny Branch

Remarks

1

2

3

4

5

6

7

8

FORM OF REGISTER NO. 2

[See rule 15(h)]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

REGISTER OF ORIGINAL APPLICATIONS

For The Year20....

TRANSFERRED APPLICATIONS

CONTEMPT PETITIONS

PETITIONS FOR TRANSFER

MISCELLANEOUS APPLICATIONS

Sl. No.

Application No.

Date of filing & registration

Name & address of the applicant

Name of the Advocate for the applicant

Name and address of the respondents

Name of the Advocate for the respondents

Subject matter

Date of admission

1

2

3

4

5

6

7

8

9

1.

2.

3.

Particulars of interim orders in the application

Date & result of the final order

Whether disposed of by S.B./D.B./F.B.

Information regarding appeal, if any, filed in the Supreme Court and the result thereof

Date of transmission of records to Record Room

Remarks

10

11

12

13

14

15

1.

2.

3.

4.

5

REGISTER NO. 3

[See rule 16]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

I.P.O./D.D. REGISTER

Sl. No.

Diary No./

Application

No.

Name of the

Party

Remitting

IPD/CO

Purpose of remittance of IPO/DD

Particulars of IPO/DD

Initials with date of Clerk receiving the IPO/DD

Initials with date of Official receiving IPO/DD in Cash Sec.

Remarks

No. & Dt.

Amount

Name of PO/Bank of issue

1

2

3

4

5

6

7

8

9

10

REGISTER NO. 4

[See rule 21(a)]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

COURT DIARY

Date.....

COURT HALL NO.

Day of the week:

Sl. No.

No. of application

Work done

Date of which adjourned

Remarks

(1)

(2)

(3)

(4)

(5)

Note : The following abbreviation shall be used in Column No. 3:

Adj : Adjourned . Adm : Admitted notice ordered PH : Part Heard PH/Adj : Part Heard/Adjourned

Dis. at Adm: Disposed of at admission stage JR : Judgment Reserved Dis/Alld.:Dismissed/Allowed

Pt. A : Partly allowed.

FORM OF REGISTER NO. 5

[See rule 39]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

READY LIST OF OAs/RAs/TAs/CPs (Civil/Crl.)/P,.Ts./M.As.

Sl. No.

No. of the case

Whether SB/DB

Date of inclusion in the ready list

Whether stands posted to any date

Date of removal from the ready list

Remarks

1

2

3

4

5

6

7

FORM OF REGISTER NO. 6

[See rule 46]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

STAGE REGISTER

Sl.

No.

Appln./

Petition

Number

Whether

SB/DB

Date of

Admission/

Issue of note

Date of

next

posting

Whether

Part-heard

or not?

Whether

connected

with any other pending

case

Date of

Final

hearing
Date of
disposal
Remarks

1
2
3
4
5
6
7
8
9
10

Instructions: 1. Application/Petition shall be entered as far as possible in the order of their Registration Number.
2. In respect of Transferred Applications the corresponding W.P. No.../Suit No..... should be written in brackets.
3. Applications disposed of should be rounded off in red ink.
4. Cases which are ready for hearing should be underlined in green ink.

FORM OF REGISTER NO. 7

[See rule 46]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

POSTING REGISTER

Date:.....

(Note :- Separate page should be taken for each date)

Sl.
No.
Application No./
Petition No.
Whether
Single Bench/
Division Bench?
Whether Part-heard or not? (if part-heard composition of the Bench)?
Whether connected with any other pending case? [If so give the number of the connected case(s)]

Remarks

(1)
(2)
(3)
(4)
(5)
(6)

FORM OF REGISTER NO. 8

[See rule 60]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

REGISTER OF INSPECTION

No. of
Application/
Petition in
which
inspection
is sought
Name of the Parties

in the Application/
petition
Name &
Address
of the
person
seeking
inspection
Date & time of commencement
of inspection with the initials
of the person
inspecting
Date & time of the completion of
Inspection with the initials of the person inspecting
Inspection
Fee, if any,
paid
Initials
of the official
who
Supervise
The inspection
Remarks

1
2
3
4
5
6
7
8

FORM OF REGISTER NO. 9

[See rule 72]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

REGISTER OF REGISTERED CLERKS OF LEGAL PRACTITIONERS

Sl.

No

Name of the Clerk

with full address

Date & No. of

Registration

Name &

Address

of Legal Practitioner

under whom

employed

Date of issue of

identity

Card

Particulars

of IPO/

DD
received
Signature
of the
Registered
Clerks
Signature
of the
Legal
Practitioner
Date
of Cancellation of Registration
Initials of the Registering/
Cancelling
Authority
Remarks

1
2
3
4
5
6
7
8
9
10
11
1.
2.
3.
4.
5.
6.
7.
8.
9.
10.
11.
12.
13.
14.
15.
16.

FORM OF REGISTER NO. 10

[See rule 120]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

REGISTER OF COPY APPLICATION

Sl.

No.

Date of
application

Amount
Received
And particulars
Of DD/IPO
Name of the application
Amount and
Date of payment of additional
fee
Date of
Preparation
of copy
Date of
delivery
of copy
Signature
of the
person receiving
Remarks

1
2
3
4
5
6
7
8
9

FORM OF REGISTER NO. 11

[See rule 120]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH
REQUISITION REGISTER

Sl.

No.

No. and

date of

Application

Particulars of

the file to be

requisitioned

Section to

which

requisition

is sent

Date of

requisition

Date of receipt

of file in the

copying section

Date of receiving

Back the file with initials

Remarks

1
2
3
4
5
6
7
8

FORM OF REGISTER NO. 12

[See rule 135]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

DESPATCH REGISTER OF FREE COPIES OF ORDERS

Sl.

No.

Case No.

Name & address of the
person to whom the free
copy is sent

No. of date of the postal

Receipt, if sent by regd. Post/A.D.

Amount of
postage

Signature
of the

Advocate/

Party taking

Delivery with date

Remarks

1
2
3
4
5
6
7

FORM OF REGISTER NO. 13

[See rule 141]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

REGISTER OF SLPs/ APPEALS TO SUPREME COURT

Sl.

No.

No. of
SLPs/appeal
before the Supreme Court

Number of the
Case appealed
against

Name of the
Applicant/
respondent

Date of

Dispatch
of
records
To S.C
Date of
receipt
of
records
from S.C
SLP
Dismissed/
Allowed with
date
Interim
Direction
If any
With
date
Final
Order
In the
Appeal
With date
Direction
If any
For
Compliance
By the
Tribunal
Steps
Taken
For
compliance
Remarks

1
2
3
4
5
6
7
8
9
10
11
12

FORM OF REGISTER NO. 14

[See rule 148]

CENTRAL ADMINISTRATIVE TRIBUNAL.....BENCH

Sl.

No.

Case
No.
Date of
disposal
of the
case by
the Tribunal
Name f the
applicants
& counsel
Name f the
respondents
& counsel
No. of appeal
if any, before
the S.C. &
date of disposal
Date of
receipt
of records
in the
record room
Date upto which
to be retained
Date on
which
destroyed
No. &
date of
Notification
of destruction
Part
I
Part
II
Part
III
Part
I
Part
II
Part
III
1
2
3
4
5
6
7
8

9
10
11
12
13
14

APPENDIX I

[See rule 18(c)]

No. 1/32/87-JA

December 18, 1991

ORDER

In supersession of the Order of the Chairman No. 1/32/87-JA dated 1.3.1988 and in exercise of the powers conferred by sub-section (6) of section 5 of the Administrative Tribunals Act, 1985, I hereby authorize all the Members of the Central Administrative Tribunal to function as a Bench consisting of a Single Member and exercise the jurisdiction, powers and authority of the Tribunal in respect of classes of case specified in the Schedule w.e.f. 1-1-1992 subject to the following procedure:-

(1)

that the case does not involve validity of any statutory provision or interpretation of any of the provisions of the Constitution.

(2)

that it is open to either party to submit to the Single Member before the matter is taken up for admission for final hearing, that it may be placed before bench of two Members. If such a request is made at the outset, the Single Member shall direct that the case be placed before an appropriate Bench of two members. Once the case is taken up, no such request shall be entertained at any subsequent stage of the proceedings for admission or final hearing as the case may be.

Explanation:

(i)

The party not making the request at the stage of admission shall not be precluded from making such a request when the case is taken up for final hearing.

(ii)

The stage of admission would also cover cases which may be finally disposed of with the consent of parties at the admission stage.

(iii)

Notwithstanding anything contained in the previous paragraphs if at any state of the proceedings it appears to the Single Member that the case is of such a nature that it ought to be heard by a Bench of two members, he may refer it to the Chairman to transfer it to a Bench of two members.

Schedule

1. Cases relating to change of date of birth.

2. Cases relating to positing/transfer.

3. Cases relating to entry in character rolls/confidential record/service record, made otherwise than as a measure of penalty under Central Civil Services (Classification, Control and Appeal) Rules, 1965.

4. Cases relating to allotment or eviction from Government accommodation.

5.

Cases relating to fixation of pay

6.

Cases relating to claims of medical reimbursement, leave, joining time, L.T.C. and over-time.

7.

Cases relating to crossing of efficiency bar.

8.

Cases relating to grant of pension, family pension, other retirement benefits, and cases relating to interest on retirement benefits.

9.

Cases relating to grant or refusal to grant advances/loans.

10. Cases relating to stagnation increment.

11. Cases relating grant of passes to Railway employees.

12.

Cases relating to grant, refusal or recovery of allowances.

13.

Cases relating to compassionate appointment/appointment of dependents of Government servants dying in harness.

APPENDIX II

[See rule 18(d)]

CENTRAL ADMINISTRATIVE TRIBUNAL

Faridkot House, Copernicus Marg, New Delhi-110001.

No. 13/19/91-JA

December 18, 1991

ORDER

In exercise of the powers conferred by section 5 and all other enabling provisions of the Administrative Tribunals Act, 1985 and in supersession of all orders on the subject, I hereby make the following order regulating constitution of Benches and distribution of work of the Principal Bench and other Benches of the Central Administrative Tribunal:-

1. In the case of the Principal Bench, the Chairman and in his absence, the senior-most Vice-Chairman available and in their absence, the senior-most member available, shall regulate constitution of Benches (including Vacation Bench) and distribution of work of that Bench.

2. In the case of other Benches, the Vice-Chairman and in his absence, the senior-most member available, shall regulate constitution of the Benches and distribution of the work.

3. Notwithstanding anything contained in the above paragraph, the power of constitution of Benches and distribution of work of the Principal Bench and other Benches, shall be subject to such general or special orders, as the Chairman and in his absence, senior-most Vice-Chairman of the Principal Bench who is available, may make.

(V.S. MALIMATH)

Chairman

APPENDIX III

[See rule 19(b)]

CENTRAL ADMINISTRATIVE TRIBUNAL

Faridkot House, Copernicus Marg, New Delhi-110001.

No. 1/32/87-JA

January 20, 1992

ORDER

In exercise of the powers conferred by sub-section (6) of section 5 of the Administrative Tribunals Act, 1985, I hereby make the following order:

In situations when a Division Bench is not available for dealing with urgent cases for admission and grant of interim orders, and the urgency is such that the matter cannot be deferred until a Division Bench becomes available, the Single Member Bench is authorized to take up such urgent cases for admission and grant of interim orders subject to the condition that if the Single Member is not inclined to admit the matter he shall refer the matter for being placed before the appropriate Division Bench as soon as the same becomes available.

(V.S. MALIMATH)

Chairman

APPENDIX IV

[See rule 49]

CENTRAL ADMINISTRATIVE TRIBUNAL

Faridkot House, Copernicus Marg, New Delhi-110001.

New Delhi, the 18th February, 1992

No. 13/19/91-JA

NOTIFICATION

In exercise of the powers conferred by section 5, 12 and 22 of the Administrative Tribunals Act, 1985 read with rule 17 of the Central Administrative Tribunal(Procedure) Rules, 1987 and in supersession of all previous orders in this regard, I, V.S. Malimath, Chairman, Central Administrative Tribunal hereby make the following order with the object of avoiding delay in dealing with the Review Petitions presented before different (additional) Benches of the Central Administrative Tribunal:

REVIEW OF ORDERS PASSED BY A BENCH OF TWO MEMBERS

1.1

Review of order in which both the Members who passed the order are functioning in the same Bench.

In such a case, the Review Petition shall be placed before the members who passed the order for consideration by circulation. If one of them is of the view that it merits a hearing, then the petition shall be placed before that Bench for preliminary hearing. In such a case, it would not be necessary to seek orders of the Chairman.

2. Review of order passed by the bench of which one member belongs to the local Bench and the other is a member of another Bench.

In such a case, the Review Petition shall be sent for consideration by circulation to the members who passed the order. If one of them is of the view that it merits a hearing, then the petition shall be placed for preliminary hearing. For that purpose, the Vice-Chairman of the local Bench shall seek orders of the Chairman.

3. Review of order in which both the members have ceased to be members of the Tribunal.

In such a case, the Vice-Chairman shall place the Review Petition for preliminary hearing before a Bench consisting of any two members of that Bench. It would not be necessary to seek orders of the Chairman in such a case.

4. Review of order in which one of the members has ceased to be a member of the Tribunal.

If one of the members who passed the order is available in that bench, the Vice-Chairman shall constitute a bench with him/her and any other member of the bench and place the petition for preliminary hearing.

If not, the Vice-Chairman shall constitute a Bench consisting of any two members of that Bench.

5. Review of order when both the members who passed the order are members of other Benches.

In such a case, the Vice-Chairman shall arrange to send the Review petition to both the members to consider the petition by circulation. If one of them is of the view that the petition merits a hearing, then the petition shall be placed for preliminary hearing. For that purpose, the Vice-Chairman shall seek orders of the Chairman.

REVIEW OF ORDERS PASSED BY A SINGLE MEMBER BENCH

II. (a) If the single member who decided the case continues to be a member of that bench, the petition shall be placed before him/her for consideration by circulation. If the member is of the view that the petition merits a hearing, it shall be posted before him/her for preliminary hearing.

(b)

If the member who decided the case has become a member of another Bench of the Tribunal, the Vice-Chairman shall send the petition to him/her for being considered by circulation. If the member is of the view that the petition merits a hearing, then the petition shall be placed for preliminary hearing. For that purpose the Vice-Chairman shall seek orders of the Chairman.

(c)

If the single member who passed the order has ceased to be a member of the Tribunal, then the Vice-Chairman shall post the petition for preliminary hearing before any member of the Bench. In such a case, it would not be necessary to seek the orders of the Chairman.

III. If the Review Petition is not summarily dismissed, further hearing shall be by the very same Bench constituted as per the aforesaid provisions.

IV. Orders of the Chairman may be sought when a situation not covered by the above provisions arises or when in the interest of justice it is necessary to deviate from the same.

Note.- The above procedure shall mutatis mutandis be followed in the Principal Bench.

(V.S.MALIMATH)

Chairman

APPENDIX V

[See rule 145]

Ministry of Personnel, Public Grievances and Pensions (Department of Personnel and Training), Notification No. S.O. 9462, dated September 13, 1990, published in the Gazette of India, Part II, Section 3 (ii), dated 29th December, 1990,

PP-5639-5642[F.No.A-11019/33/88/AT]

In exercise of the powers conferred by the Central Government under sub-clause(ii) of clause (c) of sub-section (2) of section 3 of the Destruction of Records Act, 1917 (Act V of 1917), the Chairman, Central Administrative Tribunal, hereby makes with the previous approval of the Central Government, the following rules to regulate the destruction of records, books and papers of all Bench of the Central Administrative Tribunal, namely:-

I. GENERAL

1. Short title and commencement - (1) These rules may be called the Central Administrative Tribunal (Destruction of Records) Rules, 1990.

(2)

They shall come into force from the date of publication in the Gazette of India.

2. Definitions - In these rules, unless the context otherwise requires, -

(a)

"Permanent preservation" means preservation for a period of 30 years.

(b)

"Supervising Officer" means an officer appointed by Chairman in the case of Principal Bench and by Vice-Chairman in the case of other Benches.

3. Preparation of index and separation of parts. - After receipt of a judicial record in the record section a fresh index in the form contained in Annexure I will be prepared. The papers will be numbered and entered in the index under the appropriate part of which it belongs. The part to which a particular paper belongs shall be determined with respect to Annexure II enclosed to these rules.

4. Records when treated as having reached completion - (a) The judicial record in a case shall be treated as having reached completion on the date of the final order of the Bench or in the event of an appeal to the Supreme Court on the date of the final order of the Supreme Court as the case may be.

(b)

In the case of registers and other papers in the Judicial and Administrative branches the date of completion shall be the date on which the registers were closed and in the case of files and other papers, the date on which the final order was passed thereon.

5. Records when to be taken up for destruction - All records registers/files shall be retained in the record room from the date of completion till the expiry of the period prescribed under these rules and on expiry of such period they shall be destroyed without fail :

Provided that the Registrar of the Bench concerned or the Deputy Registrar authorized by him, may for reasons to be recorded in writing order that any particular paper or the record of any particular case be preserved beyond such period: Provided further that documents filed by any officer of Government or produced by such officer shall not be destroyed if not previously re-claimed, but shall invariably be returned to the office from which they were produced.

6. Supervision of destruction - The destruction of judicial records, books and papers shall be carried out from time to time as may be necessary, and subject to the general superintendence of the Deputy Registrar (Judl.) and the supervised by such officer (hereinafter called the Supervising Officer), as may be appointed by the Chairman in the case of Principal Bench and the Vice-Chairman in the case of other Benches.

7. (i) Manner of destruction of records - The destruction of judicial records, books and papers shall be effected in any of the following manner:-

(a)

tearing so as to render it unlikely that the documents so torn may be used again;

(b)

tearing and burning it;

(c)

destroying with the help of a Paper Shredding Machine.

(ii)

Sale of paper destroyed and credit of sale price - The paper after the Supervising Officer has certified that the destruction has rendered such judicial records, books and papers of no value, unless the same is burnt shall be sold as waste under the orders of the Registrar and proceeds of the sale shall be credited to the receipt Head 070 other Administrative Service other receipts.

8. Notice before destruction of records - In January each year a notice specifying the documents filed by parties which will be destroyed during the ensuing year will be displayed on the Notice Board. A warning will be given that unless previously reclaimed by the party entitled before the due dates of destruction, the destruction will ensure. Return of documents to parties will be made under the orders of the Deputy Registrar.

II JUDICIAL RECORDS

9. Division of records - Every judicial record of Original Applications, Transferred Application, Review Applications and Contempt Applications for the purpose of these rules shall consist of three parts, namely, Part I, Part II and Part III.

10. Period for retention of parts, I, II and III of the Judicial Record - Part I of the Judicial Record shall be preserved permanently; Part II and Part III of a judicial Record shall be destroyed after the expiry of 5 years and 3 years respectively.

11. Note of destruction to be made in register, etc. - Letter "D" with date indicating that a paper or record has been destroyed on that date may be made in red ink in the index of the respective case bundle as well as in the relevant column of the records register in which such paper or record is entered.

III. OTHER JUDICIAL AND ADMINISTRATIVE REGISTER AND PAPERS

12. Judicial registers, Administrative and accounts registers, statistical registers and the papers and files maintained for administrative purposes are shown in Annexure Nos.III and IV respectively. These registers/papers will be destroyed after expiry of the periods mentioned in the said annexures.

13. Notwithstanding anything contained herein so long as an objection is outstanding and the accounts have not been completely checked and accepted in audit, they and the supporting documents should not be destroyed even though the period preservation in the rules may have expired.

14. The period retention in the record room for any judicial record, judicial/administrative registers and papers not specified in the annexures hereunder, shall be decided by the registrar/deputy Registrar with the approval of the Chairman in the case of Principal Bench and respective Vice-Chairman in the case of other Benches.

ANNEXURE I

FORM OF INDEX

LIST OF PAPERS IN NO.....OF 20.....

Serial Number of paper on record

Date of paper or Date of filing

Description of paper

Part I ? Part II Part III

.....

ANNEXURE II

ORIGINAL APPLICATIONS-TRANSFERRED APPLICATIONS-REVIEW

APPLICATIONS/CONTEMPT APPLICATIONS

Part I

1. Index Paper

2. All judgments and orders including order on order sheet in the main cases and miscellaneous applications arising therefrom.

3. Judgment and orders received from Supreme Court.

Part II

1. All applications including miscellaneous applications/plaints/memorandum/appeals together with annexures and all other documents, whether original or copies filed with them.

2. Counters/written statement and reply affidavits.

3. All other papers not already specified.

ANNEXURE III

REGISTERS MAINTAINED IN JUDICIAL DEPARTMENT

Sl.

No.

Description

Period of retention

1

2	
3	
1	
	Stamp Register (General) Permanent
2	
	Destruction Register
3	
	Register showing orders received from the Supreme Court
	Permanent
4	
	Judges Daily disposal Register
5	
	Register showing the names of the Advocates Clerks 10 Years
6	
	Transferred Application Filing Register
7	
	Original Application Filing Register
8	
	Review Applications Filing Register
9	
	Contempt Application Filing Register
10	
	Miscellaneous Applications Filing Register
	10 Years
11	
	Disposal of Transferred Applications Received Register
12	
	Disposal of Original Applications Register
13	
	Disposal of Review Applications Register
14	
	Disposal of Contempt Applications Register
15	
	Register for Return of Documents
16	
	Un-stamp Register 5 Years
17	
	Register of Cause List
	5 Years
18	
	Register of Distribution of Decided Cases
19	
	Original Applications Numbering Registers (Tail Book)
20	
	Review Applications Numbering Register 3 Years
21	
	Contempt Applications Numbering Register
22	
	Miscellaneous Applications Numbering Register
23	
	Register for sending counters and Memo of Appearances/Vakalathnama 3 Years

24	Transferred Applications Notice Register
25	Original Applications Notice Register
26	Review Applications Notice Register
27	Contempt Applications Notice Register
28	Miscellaneous Applications Notice Register
29	Register noting adjournment to Dy.Registrar's Court
3 Years	
30	Transferred Applications Posting Register
31	Original Applications Posting Register
32	Review Applications Posting Register
33	Contempt Applications Posting Register
34	Register showing reserved for judgment
35	Adjournment Register
36	Daily work Allotment Register (for drafting, typing and comparing)
37	Certified Documents Issuing Register
38	Cases transferring to other sections (Tail Book)
39	Issuing Register
40	Register of inspection
ANNEXURE IV	
ADMINISTRATIVE REGISTERS/PAPERS	
A List of Files maintained in accounts/cash section	
Sl.	
No.	
Description	
Period of retention	
1	
2	
3	
1.	Correspondence on Accounts
	Permanent
2.	
	Correspondence on GPF Accounts
3.	

Last Pay Certificates issued by CAT in respect of transferred employees and last Pay Certificates received in respect of employees transferred to CAT.

Permanent

4.

Copies of Office Orders, Sanction Orders, Leave Sanction Orders, etc.

Permanent

5.

Important Orders of Government of India

Permanent

6.

Important Orders of Government of A.P.

Permanent

7.

Income Tax Recovery Statements

10 Years

8.

Copies of Increment Certificates

6 Years

9.

Schedules of recoveries affected from salaries

5 Years

10.

Professional Tax Recovery Schedules

-do-

11.

Reconciliation of department expdr. figures and issue of monthly statement of expenditure HO/PAO

-do-

12.

Receipt Scrolls received from RBI

-do-

13.

Monthly statement of receipts and payments received from Bank

-do-

14.

List of Payments and Monthly Account submitted to PAO, CAT, New Delhi

-do-

15.

Payment Scrolls received from RBI

-do-

16.

Paid Challans

-do-

17.

Counterfoils of used cheque books

-do-

18.

Bank reconciliation statement in respect of departmental receipts

4 Years

19.

Office copies of LTC bills

-do-

20.

Office copies of Pay bills

-do-

21.

Office copies of Contingent bills

-do-

22.

Office copies of Medical Reimbursement

3 Years

23.

Office copies of Reimbursement of Tuition Fees

3 Years

24.

Office copies of Cycle & GPF Advance Bills

-do-

25.

Office copies Bills sent to PAO for Pre-check

-do-

26.

Correspondence on L.O.C.

2 Years

27.

Office copies of Pay Slips

-do-

28.

Office copies of TA bills

1 Year

29.

Post Check remarks of P.A.O.

Till the objections are finally cleared.

B. List of Files maintained in establishment stores section

Sl. No.

Description

Period of retention

1

2

3

1.

Appointment (Temporary, Ad hoc, Regular) cadre-wise, employee-wise, files

Permanent

2.

Recruitment rules, etc.

Permanent

3.

General Files/Stock Files

-do-

4.

Purchase of new building for office premises

-do-

5.

Telephone installation and upkeep

-do-

6.

Correspondence regarding Postal Bag/Box

-do-

7.

Correspondence on Telegraphic Address

-do-

8.

Delegation of Financial powers

-do-

9.

Reservation of posts for SC/ST candidates

10.

Correspondence of SIU Study Report

11.

CAT (Salaries & Allowances and Conditions of Services of Chairman Vice-Chairman and Members) Amendment Rules, 1987

12.

All files relating to drafting/amendment of Rules

-do-

13.

Administrative Tribunals (Procedure) Rules, 1986

14.

Air Coolers, Air Conditioners and Water Coolers

Till the date the equipment is written off

15.

Xerox Machine

-do-

16.

Electronic Typewriter

-do-

17.

Pedestal Fans

-do-

18.

Water filters

-do-

19.

Motor Cycle Maintenance

-do-

20.

Motor Cars Maintenance

-do-

21.

Franking Machine

-do-

22.

Gestetner Machine

-do-

23.

Office accommodation, arrangements of payment of rent for office premises water and electricity charges and office

building

10 Years

24.

Electric installations, correspondence with CPWD

-do-

25.

Disciplinary and other administrative matters

5 Years after close of the enquiry

26.

Correspondence of Lifts , 5 Years

5 Years

27.

Pay Fixation Files of all employees

-do-

28.

Vacation, Holidays, Circuit Sittings etc.

-do-

29.

Railway consignment receipts and issue

-do-

30.

Telegram Credit Account File

-do-

31.

Annual Conference of Vice-Chairman

5 Years

32.

Advance increments to State Staff

-do-

33.

Budget files (at location of provision under various sub-heads)

3 Years

34.

Entertainment arrangements for visitors

3 Years

35.

Purchase of Rubber Stamps

-do-

36.

Purchase of Forms and Registers

-do-

37.

Stock and Distribution of Registers and Printed Forms

-do-

38.

Regulation of expenditure on furniture, forms, stationery and misc.
items

-do-

39.

Petrol Coupon Counterfoils

-do-

40.

Specimen Signature of DDO

-do-

41.

Reservation of Guest House etc.

-do-

42.

Reimbursement of Local Conveyance Charges

2 Years

43.

Sanction of CL, Condoning of late attendance etc.

1 Year

44.

Personal Files

Two Years after retirement/death/resignation

45.

Sanction of Cycle, Festival Advance, O.T.A., L.T.C., M.C.A. G.P.F.

Advances, Part-Final Withdrawals etc.

3 Years after final recovery

46.

High Officials Railway Reservation (H.O.R.)

One Year after the debits are settled

47.

Internal Test Audit Notes,

3 years after the report of s settled

48.

Continuation of Staff on deputation, 3 years after completion of deputation

3 Years after completion of deputation

49.

Allotment of General Pool Accommodation of Staff Quarters,

3 Years

ANNEXURE VI

[See rule 154 (b)]

DEPARTMENT-WISE CLASSIFICATION OF CASES

(A)

ALL INDIA SERVICES

1. Indian Administrative Service

2. Indian Police Service

3. Indian Forest Service

4. Indian Foreign Service

(B)

OTHER SERVICES REGULATED BY CENTRAL GOVERNMENT SERVICE RULES

5. M/o Agriculture

6. M/o Chemicals & Fertilisers

7. M/o Civil Aviation and Tourism

8. M/o Civil Supplies, Consumer Affairs & Public Distribution

9. M/o Coal

10. M/o Commerce

11. M/o Communications

12. M/o Defence

13. M/o Environment and Forests

14. M/o External Affairs
15. M/o Finance
16. M/o Food
17. M/o Food Processing Industries
18. M/o Health and Family Welfare
19. M/o Home Affairs
20. M/o Human Resource Development
21. M/o Industry
22. M/o Information and Broadcasting
23. M/o Labour
24. M/o Law and Justice and Company Affairs
25. M/o Mines
26. M/o Non-Conventional Energy
27. M/o Parliamentary Affairs
28. M/o Personnel, Public Grievances and Pensions
29. M/o Petroleum and Natural Gas
30. M/o Planning and Programme Implementation
31. M/o Power
32. M/o Railways
33. M/o Rural Development
34. M/o Science and Technology
35. M/o Steel
36. M/o Surface Transport
37. M/o Textiles
38. M/o Urban Development
39. M/o Water Resources
40. M/o Welfare
41. D/o Atomic Energy
42. D/o Electronics
43. D/o Ocean Development
44. D/o Space
45. Cabinet Secretariat
46. President's Secretariat
47. Prime Minister's Office
48. Planning Commission
49. Government of India Press
50. Staff Selection Commission

(C)

OTHER SERVICES COVERED BY CENTRAL CIVIL SERVICES RULES, C.& A.G., PUBLIC SECTOR, AUTONOMOUS BODIES

51. Comptroller and Auditor General of India
52. Controller General of Accounts
53. Chief Election Commissioner
54. Planning Commission
55. Union Public Service Commission
56. U.T. of Andaman & Nicobar Island
57. U.T. of Chandigarh
58. U.T. of Dadra & Nagar Haveli
59. U.T. of Daman & Diu
60. U.T. of Delhi
61. U.T. of Lakshadweep

62. U.T. of Pondicherry
63. Central Board of Trustees/Central Provident & Fund Commissioner
64. Employees' State Insurance Corporation
65. Central Board of Workers Education
66. National Labour Institute
67. National Council of Safety in Mines, Dhanbad
68. Council of Scientific and Industrial Research
69. Central Social Welfare Board
70. Indian Council of Agriculture Research

ANNEXURE VII

[See rule 154 (c)]

SUBJECT-WISE CLASSIFICATION OF
DIVISION BENCH CASES

1. Absorption in Public Sector/Autonomous Bodies/Other Departments
2. Adhoc appointments/Regularisation
3. All India Services
5. Civil Services Examination
6. Creation and Abolition of Post
7. Daily Wages/Casual/Regularisation
8.
Deputation/Repatriation
9. Disciplinary-Cases
 - (a)
Major Punishment - Dismissal/Removal/Compulsory Retirement/Reduction in Rank
 - (b)
Minor Punishment - Other Punishment
 - (c)
Suspension
10. Extra Departmental Staff
11. Leave Rules - Break in Services/Dies non
12. Lien
13. Medical Facilities
14. Probation
15. Recruitment & Appointment
16. Reservation for SC/ST/Ex-servicemen/Physically Handicapped
17. Reversion
18. Retirement under FR 56(J)
19. Scale of Pay
20. Selection/Promotion
21. Seniority/Confirmation
22.
Surplus Staff-Redeployment of
23. T.A.
24.
Temporary Service, Rules/Termination of Service
25. Training
26. Uniform and Washing Allowance
27. Voluntary, Resignation/Retirement
28. All Single-Bench Cases Classified under the Heads (A) to (M) in Appendix VIII

ANNEXURE VIII

[See rule 154]

SUBJECT-WISE CLASSIFICATION OF CASES

SINGLE BENCH CASES

- (a)
Allotment or Eviction from Government Accommodation
- (b)
Claims of Medical Reimbursement, Leave, Joining Time, L.T.C. and Over-Time
- (c)
Compassionate Appointment/Appointment of Dependents (Dying in Harness)
- (d)
Crossing of Efficiency Bar
- (e)
Date of Birth
- (f)
Entry in Character Rolls/Confidential Record/Service Record, made otherwise than as a measure of penalty under Central Civil Services (Classification, Control and Appeal) Rules, 1965
- (g)
Fixation of Pay
- (h)
Grant of Passes to Railway Employees
- (i)
Grant of Pension, Family Pension, other Retirement Benefits and Interest on Retirement Benefits
- (j)
Grant or Refusal to Grant Advances/Loans
- (k)
Grant, Refusal or Recovery of Allowances
- (l)
Postings/Transfers
- (m)
Stagnation Increment

ANNEXURE IX

[See rule 156]

CENTRAL ADMINISTRATIVE TRIBUNAL _____ BENCH
INSPECTION

I

FORMAT FOR INSPECTION OF JUDICIAL SECTIONS

- Name of Department
- Date of present Inspection
- Date of last Inspection
- Date of Inspection
- Date of Inspections during the current financial year
- Name and designation of the Inspection Officer
- Name of S.O. and date from when he is in-charge
- Date of submission of compliance report to Dy. Registrar(J)

Part I

STAFF STRENGTH

(Factual data to be furnished by Section Officer)

- S.O.
- Asstt.
- UDC
- LDC
- Daftary

Peon

- 1
- 2
- 3
- 4
- 5
- 6
- 7

1.

Staff Strength

Present staff strength with date they took charge of the post.

(a) Sanctioned

(b) Actual

2.

The staff strength at the time of last inspection

(a) Sanctioned

(b) Actual

3.

Number of members of staff having working knowledge in Hindi

4.

Number of Staff working in Hindi.

5.

Distribution of work amongst various officers

6.

Number of cases received during the year

7.

Number of cases decided during the year

8.

Whether fire extinguisher has been installed and is in proper working order. If not, action taken in respect thereof.

9.

Whether the electrical fittings and wiring are safe and satisfactory and in working order.

10.

Whether space for keeping records is sufficient.

If not, suggestions, if any.

11.

Whether the racks are sufficient, if not, requirement considering the available space.

12.

How many exhaust fans have been installed, in the section, are these in working order, if not, has it been reported.

Part II

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 1.

Whether all the files received in the previous quarter are properly maintained.

(Take ten files from different racks in all and ally the documents with index and examine he following points, namely)

- (i) Whether the papers are properly classified and tagged.
- (ii) Whether notices were sent in time.
- (iii) Whether Peshies were prepared in time
- (iv) Whether Ads for service attached in the files
- (v) Whether names of the Counsels tally with Vakalatnamas.
- (vi) Whether all the particulars, are given in the facing sheet of the file cover.
- (vii) Whether the scrutiny sheet is properly submitted to the concerned officer at the time of registration.
- (viii) Whether the order sheet is maintained properly.
- (ix) Whether the amendments, if any, are incorporated.
- (x) Whether the classification of the case subject-wise and department-wise is correctly done.)

2.

Whether all the file are properly kept year-wise in seriatim and labels indicating the year affixed.

3.

Whether the court diary is maintained properly.

4.

If any file found lying on the floor or not kept at proper place, he reasons for it. The date of receipt in the section should be indicated with the name of the dealing hand.

5.

Whether the warning list is prepared and published as per the Rules.

6.

Whether the daily cause list is prepared and published as per the Rules.

7.

(a) Whether the interim orders/final orders/are communicated in time.

(b) Whether copies of common orders are kept in connected files.

8.

Whether the certified copies are issued as per the Rules.

9.

(a) Is there any delay in taking steps in complying with direction of the Supreme Court?

(b) Whether Records are transmitted to Supreme Court in time.

(c) Is there any failure in circulating the orders of the Supreme Court?

10.

(a) Whether indexing of disposed case files is done properly.

(b) Whether the files are sent to the Record Room for consignment on the days fixed for each Judicial Section.

If not, reason therefor.

(c) Whether the retention/destruction of records are done as per Rules.

11.

Whether the following registers are maintained properly and periodical inspection done by the S.O.

(a) Inward Register.

(b) Register of OA/RA/CP(C)/MP

(c) Register of IPO/DD

(d) Ready list Register

(e) Stage Register

(f) Posting Register

(g) Inspection Register

(h) Register of Registered Clerks.

(i) Register of Copy application

(j) Requisition of Register

(k) Despatch Register of free copies of order

(l) SLP Register

(m) Destruction Register

II

FORMAT FOR INSPECTION OF LIBRARY

Part I

General

1. Name of S.O. (Library), date from which posted as such.
2. Name and designation of other staff members.
3. Accommodation, furniture, lighting, arrangement, fire fighting arrangement.
4. Date of last inspection, or of previous inspection made in the current financial year.

Part II

1. Whether the books are entered in the catalogue.
2. Whether the books are properly kept in the almirahs/racks in an orderly manner.
3. Examine some books to see whether pages of the books are properly sealed.
4. Whether the books are sealed, marked and numbered (Check some books and tally the number with the catalogue).
5. Has there been any loss of book from the Library in the current financial year. If so, has the loss been reported and what action taken.
6. Check the register for temporary issue of books whether all the books so issued have been received back. If not, the details thereof.
7. Check the register for books issued permanently to court rooms, Chambers and Residential Office, etc.
8. Have the books issued permanently been checked and verified with the register. If so, when? If not, why?
9. Are correction slips received in the Library regularly? If not, why? If no correction slip has been received, what steps have been taken to procure them.
10. Have all corrections, amendments etc. been promptly incorporated in all the copies of Acts, Rules, Regulations, etc. ? If not, why?
11. Whether copies of necessary correction slips have been sent to all PS/CO and others.
12. Whether a guard file containing all the copies of Government Gazette/Notification issued for amendment/correction, adoption, modification of Acts, Rules, Regulations etc. is maintained with index.
13. Whether all necessary books and enactments etc. required for permanent issuance has been issued. If not, why? Check the requisition slips.
14. Whether the law journals have been circulated to all members and received back.
15. Are there unbound books in the Library which require binding. If so, details thereof.
16. Are the binding of all the old books in perfect order or any of them require repairing/binding. If so, details thereof.
17. Are there any book/magazine or any other paper in the Library which require weeding, if so details thereof.

Part III

1. What is the budget for previous and current financial year.
2. Whether whole of previous budget has been properly utilized or any amount was surrendered.
3. Whether the bills for books/journals purchased/subscribed for the current financial year have been paid or subscribed. If not, details thereof with reasons.

III

FORMAT FOR INSPECTION OF ADMINISTRATION SECTIONS

DIVISION A - CENTRAL ISSUE SECTION

1.

Name of Deptt.

Central Administrative Tribunal,.....Bench

2.

Date of present inspection

3.

Date of last inspection

Part I

(Factual data to be furnished by Section Officer)

A-Staff Position

S.O.

Asstt.

U.D.C

L.D.C.

Daftry

Peon

1

2

3

4

5

6

1.

Staff Strength

Present

(a)(a) Sanctioned

(b)(b) Actual

2.

At the time of last inspection

(a)Sanctioned

(b)Actual

3.

Deployment of Staff on

(a)Receipt and diarizing of dak for onward transmission

(b)Sorting and distribution of dak for onward transmission

(c)Despatch of DAK of different items

1.Dasti

2.Judgments

3.Order

4.(a) Notice

5.A/D Cards

6.Telegrams

7.Speed Post Letters

8.Administrative Dak & Misc. Dak

9.Regd. Post

10.Special Messenger

11.Counter delivery

12.Diplomatic bag

B-Grade of Work

4.

What is the average rate of dak received for onward transmission per day from various sections

(i)Hon'ble Chairman's Office

(ii)Hon'ble Vice Chairman's Office

(iii)Hon'ble Member's Office

(iv)Registrar's Office

(v)FA&CAO's Office

(vi)Judicial Sections

a.(a)Notice

b.(b) Dasti Dak

c.(c) Order

(vii)Administrative sections

(viii)Cash Section

(ix) Pay & Account Office

(x) Any other .

a.(a) Telegram

b.(b) Speed Post

5.

Average rate of receipt and dispatch of dak per day by various modes of dispatch viz. BF Receipt Despatch Balance BF

Receipt

Despatch

Balance

(i) By Speed Post

(ii) By Regd. Post

(iii) By Ordinary Post

(iv) By Special Messenger

(v) By Counter delivery

(vi) By Telegraphic Mode

(vii) By any other misc., mode

6.

If any balance is left over in total receipt & despatch, what are the reasons therefore and how many days are normally taken in Despatch Section to dispatch a Communication

Signature of Section Officer

Part II ? INSPECTION OFFICER'S REPORT

Reservations on procedural requirements

Maintained

Corrected upto date

Available Hands

1

2

3

4

(1)

List of residential address and telephone number of Officers and Staff of C.A.T., P.B. and other Benches.

(2)

List of residential address and telephone number of Officers of other Organisation e.g., Deptt.

of P&T Trg., Supreme Court, High Courts etc.

(3)

List of telegraphic address of various Benches of C.A.T. and High Courts and other outstations Deptts. with whom correspondence is exchanged frequently.

(4)

Delhi Official Directory

(5)

Official Directory of CAT

(6)

Schedule of Postal Rates

(7)

Schedule of Speed Post rates

(8)

Dak Registers in Prescribed Proforma

(a) Whether maintained properly

(b) Whether delay in distribution

(c) Whether neat and tidy

(d) Whether scrutinised by S.O. daily

(9)
Examine a sample of 50 more than one month old entries and indicate the number (if any) of -

(a) incomplete entries

(b) Delay in dispatching

(i) by 2 days

(ii) by 3 days

(iii) by 5 days

(iv) beyond one week

(10)

Despatch

Examine a sample of 50 communications Ready for dispatch and indicate number (if any) where-

(i) Covers needlessly used.

(ii) Covers used were not of appropriate size.

(iii) Economy slips, although required, not used

(iv) Address written is incomplete or illegible

(v) Window envelope used but address is not visible from the window.

(vi) Unduly large number of stamps or some other denomination used.

(vii) Covers meant for dispatch under service postage stamps not franked with facsimile impression of the signature of Officer-in-charge.

(viii) Covers marked for dispatch by Regd.

AD with AD Card not bearing reference No. of the Communication.

(ix) Reference No. of telegram ready for dispatch not indicated in the receipt portion of telegram.

(11)

Whether Despatch Register and Register of daily abstract of service postage stamps use are maintained in the prescribed forms?

Are separate Despatch Register maintained for ?

(i) Speed Post

(ii) Regd. A.D. Post

(iii) Ordinary Post

(iv) Despatch through Special Messenger

(v) Despatch by hand across the counter

(vi) Whether these Registers are maintained neat Tidy.

Whether value of stamps totaled.

(a) daily

(b) Correctly

(12)

Whether postal registration books used for registered post?

(13)

Stamp Account Register:

Whether stamp register is maintained in the prescribed form?

Totals from the despatch registers and postal registration book Posted.

(a) Daily

(b) Correctly

(c) Scrutinised by S.O. daily

(d) Inspected each month by Deputy Registrar

(e) Whether stocks available tallied with the balance shown on the register?

(14)

Spl. Messenger(s) Books-

(a) What are the number of books is use?

(b) Whether number serially?

(c)What are the basis of allocation?

(d)Whether allocation is rational?

(e)Whether the time of receipt and dispatch of urgent communication is indicated?

(15)

Efficiency in dispatching communication at random, (examine a sample of 50 items of dak despatched during the period under inspection and indicate).

(a)time taken to despatch a regd.

Letter.

(b)time taken to despatch a speed post letter.

(c)time to taken to despatch an ordinary letter.

(d)time taken to despatch a telegram.

(e)time taken to dispatch a letter through Spl. Messenger.

(16)

General Remarks

(a)Adequacy of Staff Strength

(b)Adequacy of working condition including lighting, ventilation etc.

(17)

Summing up

Brief recapitulation of defects or short comings noticed.

(18)

Suggestions for improvements

(a)by the inspecting officer

(b)Recd. For S.O/Staff and comments of Inspecting Officer thereon.

(19)

A general assessment of performance of the section including comparative appraisal with particular reference to the picture revealed during the last inspection.

Signature of Inspecting Officer

Designation

Date.....

DIVISION B - ADMINISTRATION SECTION

Name of Deptt.

Central Administrative Tribunal,.....Bench

Date of present inspection

Date of last inspection

Name and designation of the inspecting officer

Part I

Factual data to be furnished by Section Officer

S.O.

Asstt.

Caretaker

UDC

LDC

Daftry

Peon

1

2

3

4

5

6

7

8

A.

Staff Strength

1.1. Present

(a) Sanctioned

(b) Actual

2.2. At the time of last inspection

(a) Sanctioned

(b) Actual

3.3. What is the No. of members of staff saving working knowledge in Hindi ?

4.4. What is the No. of Staff working in Hindi ?

B.

Typewriters

1.1. No. of Typewriters.

2.2. No. of Devnagari Typewriters

C.

State of work

During the preceding 12 months

During 12 months preceding last inspection

1.1. No. of receipts received

2.2. No. of files opened

3.3. (i) No. of files due for recording

(ii) No.

of files recorded

(iii) No.

of files pending for recording

4.4. (i) No. of files due for review

(ii) No. of files reviewed

(iii) No.

of files pending for review

(iv) No. of files marked for further retention after review and its percentage to above

(ii).

5.5. What is the No. of cases pending

(i) pending over one month

(i) pending over three months

(ii) pending over six months

(iii) pending for more than one year

6.6. What is the No. of complaints with regard to maintenance both electrical and civil installation including maintenance of building.

(i) Recd.

(ii) Transmitted to C.P.W.D.

(iii) Pending

(iv) Complaints attended to and defects Rectified by C.P.W.D.

(v) Complaints pending (indicate period of pendency and attended to itemwise)

7.7. What is the No. of complaints received and attended to itemwise in respect of maintenance of office equipment etc.

Sl.

No.

Item details

No.

of complaints recd.

No.

of complaints attended to

No.

of complaints pending

Duration of pendency reasons for

1

2

3

4

5

(a)

Air Conditioner

(b)

Room Coolers

(c)

Water Coolers

(d)

Fans

(e)

Typewriter (Manual)

(f)

Typewriter

(electronic)

(g)

Word Processor

(h)

Computer P.C.

(i)

Photocopying Machine

(j)

Duplicating machine

(k)

Heater

(l)

Heat convector

(m)

Franking machine

(n)

Weighing machine

(o)

Telephones

(p)

Intercoms

(q)

Almirah

(r)

Furniture

(s)

General cleanliness

(t)

Any other not specified items

(u)

Relating to supply of stationery/stores

(v)

Constraints if any to carry out the day o day work and suggestion, if any, to improve the working efficiency.

Signature

Name and Designation

Part II ? INSPECTING OFFICER'S REPORT

1.

Are the following maintained ?

Neat and Tidy Upto date

Supervised by

S.O.

periodically

(1)Dead Stock Register

(2)Consumable Stock Register

(3)Distribution Register

(4)File & File Movement Register

(5)List of standard sub-heads

(6)Diary Register

(7)Asth. Diary

(8)List of subject allotted to different dealing hands.

(9)Guard Files

(10)Reference Folders

(11)Decision Diary/Precedent Book

(12)Reference Books

(13)Register for watching progress of recording of files

(14)Register for watching progress of weeding of files.

(15)Reminder diary

(16)CPWD Complaint Register

2.

Submission/processing of cases

(a)Inspecting Officer to take 10 current cases ready for submission to Deputy Registrar/Registrar or senior officer and comment upon the following:-

(i)Whether files are neat and tidy and are in presentable condition ?

(ii)Whether properly referred, docketed, flagged, tagged wherever necessary in addition to other routine requirements in putting up papers like punching of papers, use of urgency grading etc.

(iii)Whether files are resubmitted promptly in reply to queries raised by senior officers.

(iv)Whether drafts put up on file are precise and concise and name designation and telephone number of the signatory indicated.

(v)Whether files relating to processing of bills are submitted promptly and due care has been taken to ensure the compliance of relevant rules before releasing the payments.

3.

Checks on delays

a.(a) Whether weekly arrear statement is prepared

b.(b) Whether monthly arrear statement is prepared.

c.(c) Whether Check List for incoming and outgoing return is maintained and returns are sent well in time.

d.(d) Whether all incoming papers are diarised and if so, there has been any delay in diarizing the papers.

e.(e) Whether there has been any delay in typing out the fair letters.

4.

Opening and numbering of files-

(i)List of standard heads and subheads

(a)(a) Maintained ?

(b)(b) Reviewed annually ?

(ii) Files opened under appropriate heads?

(iii) Titles appropriate?

5.

Check list of incoming and outgoing periodical returns.

(a)(a) No. of periodical returns and what is the periodicity:-

Incoming Outgoing

(i) Weekly

(ii) Fortnightly

(iii) Monthly

(iv) Quarterly

(v) Half-yearly

(vi) Yearly

(b)(b) What is the No. of returns not received/sent on date?

(i) What is the number of returns recd./sent up to date?

(ii) Whether adequate steps have been taken to obviate the recurrence of delays, if so, please describe and if not what are the reason therefor?

(c)(c) Check list to attend letters received from Supreme Court High Courts, M.Ps etc and D.O. letters addressed to Hon'ble Chairman/Hon'ble Vice-Chairman.

(i) Is S.O. keeping special watch?

(ii) If so, how and if not, why?

(iii) Is the method adopted adequate, if not, what are the suggestions?

(iv) What is the number of such letters not acknowledged or interim reply given .

(a)(a) Within a week

(b)(b) Within a month

6.

Check of Staff Cars

(1) Do adequate arrangements exist to maintain and servicing of staff car/ If not what are the deficiencies?

(2) Do adequate arrangement exist for garaging vehicles Properly? If not, what are the deficiencies?

(3) Do adequate arrangement exist for refueling of vehicles? If not, what are the deficiencies?

(4) Do the log books of vehicles are maintained in prescribed proforma and entries are checked periodically by the Controlling Officer. If not, what are the deficiencies?

(5) Whether the monthly return on consumption of petrol is sent on time.

7.

Use of Hindi for Official purposes

(i) Examine a sample of 5 cases of Hindi speaking States e.g., UP, MP, HP, Bihar, Rajasthan, Haryana And Union Territory of Delhi and report as to whether in each case communication was sent in Hindi.

(ii) Take sample of 5 communications in Hindi received from member of public or employees to which replies have been sent and indicate whether letters received in Hindi are replied in Hindi or not.

(iii) Of the 10 sample cases referred to above, indicate in how many cases noting/drafting were done originally in Hindi.

(iv) Take example of 5 contracts/agreements executed and indicate the number of those not simultaneously executed in Hindi.

(v) Take sample of 5 each of (i) forms (ii) Rubber stamps (ii) subjects on file cover and indicate whether these have been prepared bilingually and if not, what action has been taken to do the needful Summing up

Summing up

1. Brief recapitulation of defects or shortcomings noticed and any other comments which inspecting officers may have to make.

2. A general assessment of the performance of the section including a comparative appraisal with reference to the picture revealed during the previous inspections. (The defects mentioned in the last three or four inspections reports with particular reference to the recurring and continuing irregularities which have not been rectified should be specially stated.)

3. Suggestion for improvement

(a) made by inspecting officer

(b) received from the staff of the section together with comments of the inspecting officer, thereon.

Signature of Inspecting Officer

Designation

Dated :

IV

FORMAT FOR INSPECTION OF RECORD ROOM

1. Date present inspection

2. Date of last inspection

3. Dates of Inspection during the current financial year

4. Name & Designation of the Inspecting Officer

5. Name of the S.O. or I/C (RR) and date from when he is in charge.

6. Date of submission of compliance report to Dy. Registrar (J).

Part I

STAFF STRENGTH

Factual data to be furnished by Section Officer

1.

1. Staff Strength

S.O.

Asstt.

U.D.C.

L.D.C.

Daftry

Peon

Present staff strength with date they took charge of the post.

(a) Sanctioned

(b) Actual

2. The staff strength at the time of last inspection

(a) Sanctioned

(b) Actual

3. Number of members of staff having working knowledge of Hindi

4. Number of Staff working in Hindi

5. Distribution of work amongst various officers

6. Whether fire extinguisher has been installed and is in proper working order. If not, action taken in respect thereof.

7. Whether the electrical fittings and wiring are safe and satisfactory and in working order.

8. Whether space for keeping records is sufficient. If not, suggestions, if any.

9. Whether the racks are sufficient, if not, requirement considering the available space.

Part II

1. Whether all the files received in the previous quarter are properly tagged and stitched. (Take ten files from different racks in all and ally the documents with index and examine in respect of other matters.)

2. How many defective files (Badar files) were found during the quarter.

3. Whether all the files are properly kept year-wise in serial and labels indicating the year affixed.

4. If any file found lying on the floor or not kept at proper place, the reasons for it. The date of receipt in record room should be indicated with the name of the official.

5. Whether the files are received in the record room for consignment in the date/dates fixed for each judicial section. If not, reason herefor.

6. Whether the records are received with lists and all such lists are properly stitched.

Part III

1. Name and number of years for which complete weeding of files done.

2. Total number of files with their Institution number, checked and ready for weeding.

3. Total number of files and year of latest file weeded after checking.
4. Ten oldest files pending for weeding and reasons of delay.
5. Steps taken for the destruction of weeded-out files.
6. Whether registers for weeded out/destroyed files maintained upto date.
7. Whether parts of the files to be maintained after weeding out are kept in order and proper place or not.

Part IV

1. Whether files requisitioned for inspection are received back within three days. If not, reasons thereof.
2. Whether files requisitioned for issuing copy are received back within three days. If not, reasons thereof.
3. Registers for requisition properly maintained or not with date of requisitioned and date of sending the files and date of receiving back.

Related AI tags, queries and research notes

Translation